

Before the
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 21-05

MCS INDUSTRIES, INC. v. COSCO SHIPPING LINES CO., LTD. AND

**COMPLAINANT MCS INDUSTRIES, INC.'S MOTION TO COMPEL DISCOVERY
FROM RESPONDENT MSC MEDITERRANEAN SHIPPING COMPANY S.A.
AND RESPONDENT MSC MEDITERRANEAN SHIPPING COMPANY S.A.'S
COUNTERSTATEMENTS AND OPPOSITION THE MOTION TO COMPEL, OR IN
THE ALTERNATIVE, REQUEST TO DEFER ITS CONSIDERATION PENDING
RESOLUTION OF A MOTION FOR SUMMARY DISPOSITION¹**

¹ As directed in Paragraph 11 of the Initial Order, non-moving party MSC Mediterranean Shipping Company S.A. has inserted its counter-summaries and arguments into the original motion. For ease of reference, each counterstatement or other addition is highlighted in yellow to signal that it is material inserted by MSC.

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Complainant MCS Industries, Inc. (“Complainant”), by and through its undersigned attorneys, hereby moves to compel (1) production of documents in response to Requests for Production (the “MCS RFPs”) and (2) answers to Interrogatories (the “MCS Interrogatories” and, together with the MCS RFPs, the “MCS Discovery Requests”) propounded upon Respondent MSC Mediterranean Shipping Company SA (“Respondent”).² This Motion to Compel (“Motion”) sets forth Complainant’s efforts to confer in good faith and obviate the necessity of this Motion, copies of the MCS Discovery Requests and the responses thereto, and a request for relief and supporting arguments as required by 46 C.F.R. § 502.150. It is supported by the Declaration of Matthew J. Reynolds (“Reynolds Declaration”) and the exhibits attached thereto.

Complainant’s Verified Complaint in this action (the “Complaint”) alleges five causes of action against Respondent under the Shipping Act, contending that Respondent has violated the Shipping Act by:

- engaging in unjust and unreasonable practices relating to receiving, handling, storing, and delivering the property of Complainant and, upon information and belief, other shippers (Count I);
- providing service that is not in accordance with the rules and practices in Complainant’s service contract with Respondent (the “Service Contract”) (Count II);
- unfairly and unjustly discriminating against Complainant in favor of other shippers (e.g., shippers paying Respondent higher “spot market” prices) in the matter of rates or charges with respect to the ports identified in the Service Contract (Count III);
- unduly and unreasonably preferring and advantaging other shippers (e.g., shippers paying Respondent higher “spot market” prices), to the prejudice and disadvantage of Complainant, with respect to the ports identified in the Service Contract (Count IV); and
- unreasonably refusing to deal or negotiate with Complainant with respect to the Service Contract and the service provided pursuant to it (Count V).

² 46 C.F.R. § 502.150.

The MCS Discovery Requests seek discovery of evidence that is relevant to Complainant's five causes of action and Respondent's defenses, including:

- The course of conduct between Complainant and Respondent pursuant to the Service Contract between them;
- How Respondent allocated space on vessels sailing the lines covered by the Service Contract;
- What cargo Respondent actually carried on those lines pursuant to any service contract or not pursuant to any service contract;
- Whether there was available cargo space on Respondent's vessels during the period in which Complainant was not receiving its allocated space under its Service Contract;
- The financial performance and corporate structure of Respondent during the periods in which Respondent alleges it faced "unprecedented dislocations" and "substantial operational difficulties" and "challenges", and for which Respondent has pled that any "alleged nonperformance of the contract or violations alleged herein were excused by force majeure and MSC is not responsible for damages resulting therefrom";
- The defenses that Respondent has asserted with respect to Complainant's claims (such as the timeliness of Complainant's requests to book cargo space, Respondent's allegation that the acts of third parties—e.g., intermediaries and agents—over which Respondent claims it had no direction or control are the cause of Complainant's claimed damages, and Respondent's invocations of *force majeure* during the COVID-19 pandemic);
- Respondent's document retention practices; and
- The identity of individuals with knowledge about these same topics.

From the very early days of this proceeding, Respondent has sought to impose preconditions to complying with its discovery obligations that are neither required by the Federal Maritime Commission's Rules of Practice and Procedure (the "Rules") nor appropriate to this particular case. Respondent's efforts to evade its discovery obligations are inconsistent with the Scheduling Order in this action, which tracks in relevant part the Joint Status Report and Proposed

Discovery Schedule to which Respondent agreed.³ Respondent has also flatly refused to provide discovery that relates to certain claims in the Complaint, despite the fact that Respondent did not file a motion to dismiss any of Complainant's causes of action in this case. Respondent appears to think that it is the arbiter of what it should produce before the Commission. This also is not the first time in recent months that Respondent has failed to comply with its discovery obligations: the Presiding Officer issued an order compelling Respondent to produce documents in another case less than two months ago.⁴

Despite several lengthy teleconferences and extensive correspondence between counsel, both before and after Respondent served its Responses and Objections to the MCS RFPs, the parties have reached an impasse with respect to many of Complainant's requests. This impasse is demonstrated even more clearly by Respondent's objections to the MCS Interrogatories, in which Respondent *refused to provide a single substantive response*, instead referring to its improperly limited document production and the very same objections about which the parties have reached impasse in relation to the MCS RFPs. Having previously raised these issues with the Presiding Officer on October 5, 2021,⁵ and cognizant of the discovery schedule set forth in the Scheduling Order, Dkt. 15, MSC Industries now brings this dispute to the Presiding Officer, and requests that this Motion be granted.

³ See Scheduling Order, Dkt. 15 at 1; Joint Status Report and Proposed Discovery Schedule, Dkt. 13 at 2.

⁴ See Order on Motion to Compel and for Sanctions, Intermodal Motor Carriers Conference, American Trucking Associations, Inc. v. Ocean Carrier Equipment Management Association Inc, et al., Dkt. No. 20-14, Doc. No. 74 (September 27, 2021).

⁵ See Complainant MCS Industries, Inc.'s Submission of Disputes Concerning Scope of Initial RFPs, Dkt. 16.

COUNTERSTATEMENT TO INTRODUCTION

Complainant's motion to compel incorrectly asserts that MSC has refused to provide relevant discovery in an effort to impede Complainant's efforts to prove its case. To the contrary, MSC has proposed from the very outset of the case a sequenced approach of proportionate and relevant discovery to focus on Complainant's core allegation that MSC improperly refused to carry its cargo during the period from May to July, 2021 from three ports in China -- Fuzhou, Tianjin, and Qingdao -- to the U.S. West Coast. MSC has provided all of the responsive, non-privileged documents it has been able to find upon a reasonable search as to the whether carriage of MSC cargo from these ports was requested and undertaken during this time period, and, if the cargo was not carried, why not. MSC identified in its initial disclosures early in September the persons most directly involved in these issues, and has offered the two witnesses MCS has noticed for deposition on them on the dates Complainant itself noticed, which are within the discovery period. There is simply no basis for MCS' assertion that it has been prevented from undertaking discovery into these issues, or that MSC's discovery conduct somehow warrants an indefinite extension of the discovery deadline.

MSC's efforts to focus the discovery on these core issues has already succeeded in narrowing the issues. For example, the Complaint asserted that MSC had carried only 35 percent of the cargo that Complainant claimed it was allocated for the May-July 2021 period, and COSCO only 1.6 percent.⁶ The Complaint further alleged, based on these assertions, that MSC was

⁶ Complaint, ¶¶ 35 and 42. Because COSCO has settled, there was no discovery into this 1.6% allegation, but COSCO's verified answer, at p. 3, avers that "this eye-catching claim about service in the May-July 2021 period - which was repeated twice in MCS's Complaint, attested to under penalty of perjury by MCS, and repeated in multiple media accounts - is a false statement of material fact to the tribunal." Asked about whether the Complaint did in fact make a false material statement on this point, Complainant's CEO could not attest to the accuracy of the 1.6% assertion, even though he verified the Complaint. [Master Dep. at 172:22 - 173:7]

colluding with other carriers to breach their contractual commitments, in order to force Complainant and other shippers into the spot market. However, discovery into the matter has disclosed a far different picture.

Complainant has stated in support of its own damages claim, and its CEO has confirmed at his deposition, that MSC carried all of the contracted cargo Complainant was allocated at the Fuzhou port for the relevant period.⁷ Accordingly, Complainant has now agreed that its claims only pertain to alleged issues with carriage from two ports, Qingdao, China and Tianjin, China from May to August 2021. Complainant has further stated in support of its own damages claim, and its CEO has confirmed at his deposition, that in June MSC carried 7 of the 15 FEUs it was allocated at Tianjin, and 100 percent of the allocation (12 of 12 FEUs) for July. The bulk of the alleged noncarriage was 39 FEUs at the Qingdao port from May through July.⁸ Complainant has not alleged any problems after July, and discovery has not disclosed any.⁹

The obvious place for discovery in light of this information, and indeed for proper inquiry before the Complaint was filed,¹⁰ would be as to what happened at Tianjin to resolve by July what appeared to be an issue earlier in the period, and what might have been happening at Qingdao that was resolved after July. As to Qingdao, for example, discovery already provided discloses that

⁷ See Master Dep. at 46:12-20 (MCS got “all it wanted” at Fuzhou); *id.* at 47:4-23 (conceding the full allocation of “three or four [FEUs] a month” was carried at Fuzhou.)

⁸ See Exhibit A.

⁹ See Master Dep. at 141:7-8 (MCS’ CEO concedes that it has been “getting acceptable service” at Qingdao “since [MCS] filed the lawsuit,” at the end of July.)

¹⁰ The Complaint was filed at the end of July, a month during which, by Complainant’s own assertions, MSC had carried all of the cargo allocated to Complainant at both the Fuzhou and the Tianjin ports. Asked why the Complaint did not acknowledge these highly relevant facts, Complainant’s CEO stated the following: “you know, the Complaint was drafted and then presented to us for consideration, and, you know, I think we were, in July we were in the midst of, you know, deliberations and, you know, I’m not sure -- I’m not recollecting that, yes, I was aware of stellar performance in Tianjin in July.” [Master Dep. at 63:12-19]

MSC received no booking requests between May 8 and July 8, and no written communications at all from Complainant concerning problems with bookings from May 24 to July 8.¹¹

Rather than undertake the obvious inquiries as to what was happening at Qingdao, the port where Complainant was apparently having the bulk of its problems, and as to what transpired to resolve the issues at Tianjin, the port where MSC's carriage was at 100 percent of Complainant's claimed allotment by July before the Complaint was filed,¹² Complainant took a different tack, which it continues in its motion to compel. It first sent a letter on July 14 to Chairman Maffei, copying the Justice Department and various elected officials, complaining about its situation.¹³ Before receiving a response from either the Commission or the Justice Department,¹⁴ Complainant pressed ahead with filing a complaint, refusing on advice of counsel to send a demand letter to MSC prior to suing,¹⁵ and hiring a public relations firm to issue a press release touting the

¹¹ See MCS's Initial Disclosures, MSC's Initial Disclosures, and Complainant MCS Industries, Inc.'s Responses and Objections to The First Set of Interrogatories and First Request for Production of Documents of Respondent, Complainant's Objections and Responses to Interrogatory 5, attached as Exhibit B.

¹² Complainant's CEO was asked at his deposition if he had undertaken any inquiry as to the improvement at Tianjin, under Complainant's own figures, from 0% in May, to nearly 50% in June, to 100% in July. [Master Dep. at 52:4-53:11, 55:4-16.] He acknowledged that Complainant was asserting these figures to be accurate and that they showed "some improvement," but stated that had no knowledge as to what was happening with respect to carriage at Tianjin in July and had not inquired about it. [*Id.* at 60:17-61:20, 63:8-21, 65:24-66:10, 72:13-73:1].

¹³ See Exhibit C. Among other things, the July 14 letter argues that the conduct it complains of is injurious because it is undertaken by carriers operating in a highly concentrated market, but it cites market share figures that show an unconcentrated market under the Herfindahl-Hirschman Index, which is commonly used by the antitrust enforcement agencies to calculate market concentration. See *id.* at 1. Complainant's CEO signed the letter and discussed it with the press, but was not familiar with this commonly used measure of market concentration and did not know if the ocean shipping market would be considered unconcentrated under the figures he set to the Commission and the Justice Department. [Master Dep. at 124:15-125:7]

¹⁴ Complainant's CEO testified that he never heard back from the Justice Department, and spoke with two persons at the Commission only after the Complaint was filed, who advised him that further discussions would not be appropriate while the Complaint was pending. [Master Dep. at 109:12-110:8, 182:11-18.]

¹⁵ See Master Dep. at 197:8-198:10. Mr. Master testified that he knew what a demand letter was, and that his company had sent one in another recent case in which it is involved. *Id.* at 198:11-

Complaint before it was even served.¹⁶ And rather than address any alleged claim as to its dispute over contractual performance under the dispute resolution provisions in its service contract that provide for arbitration,¹⁷ Complainant filed its highly publicized complaint at the Commission where it would have a higher profile platform to increase the reputational damage to MSC of its allegations.

Complainant faced a problem in undertaking this course of action, however. The Commission has no jurisdiction over breach of contract claims under the Shipping Act, which provides that “[u]nless the parties agree otherwise, the exclusive remedy for a breach of a service contract is an action in an appropriate court.” 46 C.F.R. § 40502(f). *See Cargo One v COSCO Containers*, 28 SRR 1635, 1645 (FMC 1998)(stating that the Commission will involve itself in contract matters only if a party alleging a Shipping Act violation as to a matter covered by contract “successfully rebuts the presumption that the claim is no more than a simple contract breach claim,” and that “the test is whether a complainant's allegations are inherently a breach of contract, or whether they also involve elements peculiar to the Shipping Act.”) Complainant thus sought to try to make the Complaint look like more than a simple breach of contract claim, in order to

199:2].

¹⁶ The press release, attached as Exhibit D hereto, was issued July 29, 2021 “for immediate release,” and the Complaint was served August 3, 2021.

¹⁷ Complainant has acknowledged on several occasions that its Shipping Act claims depend fundamentally on allegations of breach of contract. It stated in its “report of potential disputes” submitted to Your Honor on October 8, 2021, at 2, that the Complaint “alleges a course of conduct in which Mediterranean Shipping failed to provide . . . contractually agreed-upon space for MCS Industries cargo on Mediterranean Shipping’s ships, in violation of the Shipping Act.” Count II of the Complaint in fact alleges a pure breach of contract, namely an alleged “provision of service in the liner trade not in accordance with the rules and practices contained in its respective service contract with MCS.” And its motion to compel likewise refers to MSC’s contractual obligation to carry MCS cargo under the service contract and asserts that MCS “failed to provide the agreed space for Complainant’s cargo on Respondent’s ships.” *See* p. 14, *infra*.

overcome the presumption against jurisdiction stated in *Cargo One*, by making a series of provocative allegations, many on “information and belief” without any specific support, apparently in the hope that it could then use the proceeding as a fishing expedition to try to turn up something to support more than a simple breach claim.

Complainant thus spiced the Complaint with allegations that sought to create an aura of conspiracy and collusion between MSC and COSCO and other carriers. The Complaint is replete with such allegations, most alleged on “information and belief,” such as that carriers “began taking parallel and strikingly similar actions to prop up ocean carriage pricing,” including blank sailings (§ 4), and that MSC and COSCO “engage in a common practice of refusing to perform even under those limited service contracts,” (§ 7), “have changed their practices in parallel and seemingly coordinated fashion” (§ 11), and have organized into collusive “alliances” that “collectively control over 90 percent of all transpacific trade,” (§16), which “give Respondents venue and opportunity to coordinate discriminatory practices such as those alleged herein.” (§ 17). The allegation as to alliances was particularly reckless because such alliances are authorized and carefully overseen by the Commission, and because MSC and COSCO are not in the same alliance, and have no Commission-filed agreement with each other of any kind.¹⁸

At the deposition of Complainant’s CEO, who verified the Complaint, Complainant’s counsel stipulated, and its CEO “absolutely” agreed, that Complainant was not intending to make any allegation and had no evidence that MSC conspired or colluded with COSCO or any other party as to the actions alleged, and that Complainant was not making any allegations that MSC

¹⁸ Asked about this allegation in the Complaint he verified, Complainant’s CEO admitted that he is “not aware of [the Commission’s] regulatory activities” with respect to alliances. [Master Dep. at 125:8-16].

conspired or colluded with COSCO or any other carrier as to the conduct alleged.¹⁹ Why then did such allegations pepper the Complaint? The inference is obvious; the allegations were made so that the Complaint appeared on its face to sound in something more than breach of contract; otherwise, it would be outside the Commission's jurisdiction. Once there was the slightest inquiry into the matter, however, the suggestion of collusion and coordination was were abandoned. The abandonment of the collusion allegations leaves the Complaint alleging merely separate breaches of contract by MSC and COSCO, so Complainant now seeks to tie its Shipping Act claims to a supposed scheme by MSC (and, apparently separately, COSCO and other carriers) to consciously refuse to honor its service contract to force Complainant into the spot market. Again, the focused discovery to date has provided no support for this fanciful theory. *See Tottenham v. Trans World Gaming Corp.*, No. 00 Civ. 7697, 2002 WL 1967023, at *2-3 (S.D.N.Y. June 21, 2002)(refusing to allow a plaintiff to propound broad requests to support allegations in a complaint unless they had "some modicum of objective support."). This theory is of course wholly inconsistent with the fact that, as Complainant has now conceded, MSC carried all of its cargo at Fuzhou for the entire period, was carrying all of it at Tianjin before the Complaint was filed, and is now carrying all of it at Qingdao, even in an extremely tight market.²⁰ At his deposition, Complainant's CEO was

¹⁹ See Master Dep. at 114:14-20 ("MR. REYNOLDS: Thank you. Yeah, that's correct; our Complaint was not intended to allege any unlawful conspiracy between the two Respondents named in the Complaint and was not intended to convey our possession or the existence of specific hard evidence of such conspiracy."). See also *id.* at 132:15-23 (Q. . . again, as we said before, you are not intending to allege that somehow you have specific evidence that MSC coordinated with Cosco or any other carrier. A. Absolutely not. We're not saying that. We are -- well, wait a second. We don't have specific evidence of that, that's correct."]

²⁰ As to Qingdao, discovery has disclosed that Complainant placed only two bookings with MSC for the time period relevant to the Complaint, on April 8 (renewed on May 8) and July 8, and had no direct communications with MSC at all as to any failure of carriage from May 24 to July 8. [See Exhibits E and F] Indeed, right in the middle of the period in which Complainant alleges MSC had some kind of scheme to deny it carriage, there is record of a communication between Complainant's point person at the time, Ms. Schantzenbach, and MSC's, Mr. DeMarino, in which she does not suggest to him in any way that there is a problem with carrying cargo that Complainant

asked about the allegations in the Complaint that MSC was engaged in such a scheme, rather than doing its best under the contract in an extremely challenging environment, and he admitted repeatedly that he had no specific information to support these allegations, many of which again had been made not on the basis of any knowledge, but on “information and belief.”²¹ While noting that his views on why MSC did not carry cargo were based on speculation, Complainant’s CEO did, however, observe that the fact the full allocation was carried at Tianjin in July “indicates to me [] that we were communicating correctly in booking something in July and got the containers that we had forecasted under the -- our agreements, yes.”²²

Had MSC filed a motion to dismiss, Your Honor would have had to take all of the Complaint’s allegations as true, even though MSC knew they were not, and even though Complainant itself has now walked away from a number of them or admitted it has no specific evidence supporting them. *See, e.g., YSN Imports Inc. d/b/a/ Flame King v. Oberlander*, Dkt No. 21-02 (July 7, 2021)(in deciding motion to dismiss the Commission follows Fed. R. Civ. P. 12(b)(6), under which “the facts alleged are taken as true and all reasonable inferences are drawn in the complainant’s favor.”) MSC had also discovered in its own investigation, and discovery has confirmed, that for many weeks in which Complainant was alleging MSC was refusing to carry

was attempting to book. [See Exhibit G] The problem, as MSC has advised Complainant and as Complainant is no doubt already aware, and as Complainant was or should have been aware before filing its Complaint, was an apparent miscommunication involving Complainant’s handling agent and/or the agent who places bookings with MSC. MSC resolved the problem as soon as it became aware of it, and Complainant is now using a different booking agent at Qingdao. [See Exhibit H]

²¹ *See* Master Dep. at 71:18-73:10 (testimony of Complainant’s CEO, who verified the Complaint, that the carriage of 100% of Complainant’s cargo at Tianjin in July was inconsistent with the Complaint’s theory that MSC’s breach was intentional, and that he did not know how many booking requests MSC received at Qingdao during the period.). *See also id.* at 56:22-25 (“Q. Okay. And then what was going on in June? Why was it 7 and 15 in June? A. I can't speculate why your client denied us eight containers in June.”)

²² Master Dep. at 55:17-56:21.

its cargo, MSC had not even received a request for carriage, a fact that could not be considered on a motion to dismiss. While MSC's counsel is aware of Commission precedent that provides a breach of contract can also constitute a violation of the Shipping Act if certain additional elements are shown, MSC's counsel is not aware of any support for the proposition that Shipping Act violations can be alleged as to conduct that is proper under a contract or undertaken in good faith under a contract.

MSC therefore proposed, and still maintains, that the most efficient way to resolve the Complaint is to undertake discovery that focuses first on the circumstances under which Complainant requested or attempted to request carriage under the contract, and under which MSC did not carry that cargo. As noted above, under the facts as they have been developed so far in discovery this involves inquiry into 20 FEUs that Complainant alleges MSC did not carry from Tianjin in May and June, and 39 FEUs from Qingdao from May through July. MSC has not objected to providing information as to this alleged noncarriage, and believes that it has provided the relevant documents on these issues to the best of its ability. MSC has also offered for deposition the two witnesses Complainant has noticed on these issues on the dates on which Complainant noticed them.

Operating under the assumption that Complainant itself was in the best position to know when it attempted to book its own cargo under its service contract, and having found it had received no such requests for virtually all of the weeks in which Complainant alleged its cargo was not carried, MSC sought to get that information from Complainant throughout September so that it could participate in a meaningful mediation, but did not receive it. It repeated the request at the first meet and confer session after discovery was exchanged, held on October 5, 2021, and proposed that to move things along Complainant provide information as to representative bookings

that Complainant alleged it had properly made but were not carried so that MSC could investigate the matter.²³ Complainant finally did so on October 7, 2021 by identifying four bookings at Qingdao (one a purported renewal of the first booking), and MSC responded on October 13, 2021, pointing out that none of these bookings had been made properly under the contract.²⁴ This confirmed MSC's view that discovery should be limited to the core of the Complaint: whether as to the 59 TEUs Complainant has put in issue here it had made a proper booking request and if so what MSC's response was, of the before dealing with the extremely broad and burdensome discovery Complainant has sought, which includes 40 separate requests for production and 19 separate interrogatories, one with at least 12 express subparts and another with at least 36. *See* Fed. R. Civ. P. 26(b)(1)(discovery must be "proportional to the needs of the case"). Complainant's attempt to characterize the discovery it has sought as somehow limited and focused is belied by even a cursory review of the discovery itself, not to mention that Complainant has filed a nearly 50-page motion to compel it. Nothing in this case warrants that kind of overkill.

The wisdom of MSC's approach is further confirmed by Complainant's request for adjustment of the procedural schedule. Setting aside that Complainant waited to file the motion until three weeks before the end of the discovery period, although MSC's proposal for an orderly discovery process was first advanced nearly seven weeks beforehand, the main reason that Complainant seeks an extensive and open-ended extension is that it has sought and insisted on extensive and extremely burdensome discovery even though a far more efficient alternative is available. That alternative is to focus on the core allegations of the Complaint which are now quite

²³ *See* Declaration of Matthew J. Reynolds in Support of Complainant's Motion to Compel Discovery from Respondent MSC Mediterranean Shipping Company S.A., Exhibit 6, at p. 3.

²⁴ *See* Declaration of Matthew J. Reynolds in Support of Complainant's Motion to Compel Discovery from Respondent MSC Mediterranean Shipping Company S.A., Exhibit 8, at pp. 1-3.

narrow (59 FEUs at two ports), and conduct additional discovery if only if that initial discovery shows some basis for Complainant's effort to turn what is at best a breach of contract action, and is proving to be not even that, into a broad Shipping Act claim.

MSC fully expects that after discovery limited to these issues is completed, it will be in position to file a motion for summary disposition that readily resolves this action. Complainant has noticed two key persons on MSC's side for deposition on December 3 and 7; MSC will provide them on those dates and has offered the alternative date of December 1 for one of them. MSC has noticed two key persons on Complainant's side for December 8 and 10. MSC believes that this discovery will establish that there is no basis for the speculative allegations that MSC willfully breached its contract and refused to deal with Complainant as part of a scheme to force Complainant into the spot market, just as there was no basis for the allegations of collusion and coordinated activity that Complainant has already abandoned. Indeed, the allegations are already rendered implausible by the fact that MSC was carrying 100 percent of the claimed allocated cargo at two of the three ports at issue before the Complaint was even filed, and the problem at the third port (Qingdao) was resolved months ago when Complainant started using a new booking agent and MSC started getting timely notice of requested bookings.

Under this approach, consideration of Complainant's sprawling motion to compel can be deferred until the motion for summary disposition is decided.²⁵ If the motion can be granted on the current record, along with anything further that is disclosed in the four depositions that have been noticed before the initial discovery deadline, the motion is moot. If Complainant in response

²⁵ As set out in MSC's initial disputes report to Your Honor, filed October 12, 2021, at 4, MSC advised Complainant in early October that if it moved to compel answers to its extensive, burdensome, and likely unnecessary discovery, MSC would ask Your Honor to adopt such a segmented approach. Complainant nonetheless waited over five weeks to file the motion, and MSC is now responding just as it said it would.

to that motion identifies some material fact as to which additional discovery is needed to resolve a proper claim, or Your Honor believes in resolving the motion that there are issues of fact that need to be further developed, that discovery can be provided in a much more focused and direct manner than if the decision on providing it is made the context of Complainant's highly generalized motion to compel, which takes no account of the substantial discovery that has been provided so far undermining the allegations of the Complaint that seek to turn this from a breach of contract action into a Shipping Act action, but simply refers back to a Complaint that is legally insufficient and wholly unsupported. If Your Honor prefers to proceed to consider the motion now, MSC addresses each specific request in detail below, to show that the motion to compel should be denied.

I. BACKGROUND

As detailed in the Complaint, Complainant and Respondent entered into a written service contract within the meaning of 46 U.S.C. Section 40102(21) for the 2021 shipping year in which the parties agreed that Complainant would ship, and Respondent would carry, a certain Minimum Quantity Commitment ("MQC") of cargo during the term of the Service Contract. Such shipments were to be reasonably spread throughout the term of the Service Contract. The Complaint alleges a course of unjust and unreasonable conduct in which Respondent failed to provide the agreed space for Complainant's cargo on Respondent's ships and unreasonably refused to deal or negotiate with Complainant in that connection, in violation of the Shipping Act. The Complaint further alleges, upon information and belief, that Respondent discriminated against Complainant and instead gave other shippers preferential treatment, including by allocating space that should have carried Complainant's cargo to and from the ports specified in the Service Contract to shippers that purchased space on a spot-market basis at higher prices.

Consistent with and in furtherance of these allegations, on September 24, 2021 Complainant served the MCS RFPs,²⁶ seeking focused discovery from Respondent of documents and communications concerning Complainant, its Service Contract, and its cargo; Respondent's scheduling, allocation of space, and pricing on relevant sailings of its vessels from the three Chinese ports covered by the Service Contract during the relevant months of the current shipping year; and Respondent's financial performance during the current and prior shipping years, which is relevant to Respondent's claims of "unprecedented dislocations" and "substantial operational difficulties" and "challenges", and to Respondent's invocation of force majeure as a defense to any alleged nonperformance.²⁷ On October 7, 2021, Complainant served the MCS Interrogatories, which closely tracked the MCS RFPs in seeking information that is directly relevant to the pending claims and defenses raised by the parties, as well as the identities of persons with relevant knowledge and information.²⁸ The parties have entered into a robust confidentiality stipulation, which the Presiding Officer recently entered as a protective order in the case,²⁹ allowing designation of documents and information as "Confidential" or, for documents and information to which other parties should not have direct access, "Confidential Outside Counsel Eyes Only".³⁰

²⁶ Reynolds Decl. Ex. 1.

²⁷ See Verified Answer of Respondent MSC Mediterranean Shipping Company S.A., Dkt. 6 (the "Answer"), ¶¶ 2, 15, 32 & at 17 ("Any alleged nonperformance of the contract or violations alleged herein were excused by force majeure and MSC is not responsible for damages resulting therefrom.").

²⁸ Reynolds Decl. Ex. 2.

²⁹ See Order Entering Confidentiality Stipulation and Protective Order, Dkt. 20.

³⁰ See Joint Motion for Entry of Confidentiality Stipulation and Proposed Protective Order with Appendix, Dkt. 19.

COUNTERSTATEMENT TO BACKGROUND

Complainant's background statement begins by pointing out that this case is based on its service contract with MSC and its allegations that MSC did not properly carry cargo under the contract. MSC agrees that this case alleges at bottom an alleged breach of contract. Of course, a bilateral contract imposes duties on both parties, including in this case that any request for space be made under the proper contract and that it be made in a timely manner at least seven days before the vessel cutoff date. *See* Contract ¶¶ 4.3. Complainant's background statement notably does not allege that it complied with any necessary contractual requirements as to the cargo it claims MSC failed to carry. As set out above, MSC has attempted from the very outset of this case to ascertain Complainant's basis, if any, for asserting that it complied with these requirements, because MSC's own investigation concluded that Complainant did not. And of course, if Complainant did not properly and timely tender cargo to be shipped under the service contract, there can be no basis for Complainant's assertion that MSC did not comply with its contractual obligation to carry the cargo, and certainly no basis for the allegations that this noncompliance supposedly constitutes separate violations of the Shipping Act.

Complainant makes much of the fact that MSC did not file a motion to dismiss, but the discussion above makes clear why; it is often far easier to deal with a claim by showing that Complainant has not and cannot provide sufficient evidence in support of it rather than to deal with it in a context where the allegations of the Complaint are to be accepted as true regardless of whether there is any factual support for them. Moreover, a decision not to file a motion to dismiss before answering does not waive a party's position that a claim is legally insufficient. *See* Fed. R. Civ. P. 12(g)(2)(stating the non-waiver rule.) Complainant is not entitled to discovery in support of legally insufficient claims.

In any event, the discovery to date makes clear that there is no reasonable basis for any of Complainant's Shipping Act claims. Complainant's claim that MSC was engaged in an unreasonable practice of refusing to perform a service contract (Counts I and II), depends not only on showing MSC's alleged breach of contractual responsibilities, which are not themselves sufficient to invoke this Court's jurisdiction, but on the additional showing that MSC did so as part of practice of contractual noncompliance so that it could sell contractually allocated space on the spot market. As set out above, the discovery shows that there is no basis for such a theory, and that Complainant had no basis for it when alleging it other than the fact of the alleged breach of contract. *See pp. 9-10, supra.* And the assertion is implausible in any event given that if MSC did want to sell more space on the spot market it could simply have entered into fewer service contracts or terminated the contracts it has, which it is permitted to do on 90 days' notice (30 days if a party does not agree to a peak season surcharge.)

Complainant's refusal to deal claim (Count V) in the context of a "service contract, which is continuous and ongoing" is legally deficient. Complainant alleges a refusal to deal on the basis that other carriers refused to enter into service contracts with it, but since it admits MSC did enter into a contract with Complainant that cannot be the basis of a refusal to deal claim. Complainant further alleges that the minimum quantity commitment in the contract it received was less than it wanted, but its CEO admitted at his deposition that the demand for service contracts exceeds supply in the current market, and that the Complainant itself refused to accept a service contract MSC offered it on another trade lane.³¹ Moreover, discovery discloses that Complainant accepted an offer of *less* space than it was offered at Fuzhou, and that the space was increased at MSC's

³¹ Master Dep. at 38:8-40:3; 106:5-107:19.

request.³² Complainant's refusal to deal claim thus collapses into a desire for more space in a tight market (but only when it wants it) and criticism that MSC could have handled service inquiries more promptly. The notion that this kind of normal contractual give and take constitutes a "refusal to deal" is fanciful and entirely unsupported by any Commission precedent.

The Complaint's allegation of discrimination against Complainant and in favor of other shippers (Counts III and IV), fails as a matter of law, as such discrimination is prohibited only with respect to ports and not with respect to shippers under the express terms of 46 U.S.C. §§ 41104(5) and (9). Nor is the Complaint precise about exactly what discrimination in favor of other shippers it claims. Complainant's CEO expressed the opinion at his deposition that carriers should not be permitted to discriminate between large and small shippers,³³ but the prohibition on such discrimination was expressly removed by the Ocean Shipping Reform Act when 46 U.S.C. §§ 41104(5) and (9) were amended to allow such claims only as to discrimination among ports and not among shippers.³⁴

Finally, as discussed more fully below, Complainant's contention that it needs information on MSC's financial performance over several years to determine if there were unprecedented dislocations and substantial operational difficulties and challenges during the relevant time period that affected carrier performance cannot be taken seriously. The situation is well known to even the most casual observer and has been the subject of Commission inquiry. In any event, MSC has

³² See Exhibit I.

³³ Master Dep. at 104:20-105:8.

³⁴ See 144 Cong. Rec. S3306-01, *S3319 (1998) ("The most significant benefit of S. 414 is that it will provide shippers and common carriers with greater choice and flexibility in entering into contractual relationships for ocean transportation and intermodal services. It accomplishes this through seven specific changes to the Shipping Act of 1984. . . It eliminates the requirement that similarly situated shippers be given the same service contract rates and service conditions. It eliminates the current restrictions on individual common carriers engaging in discriminatory, preferential, or advantageous treatment of shippers...").

provided substantial discovery as to Complainant's attempts (or far more often lack of attempts) to book cargo during the time period of the Complaint and MSC's response, and there is no need for a fishing expedition into the finances of a privately held company to address these issues. In summary, it is not sufficient for the Complainant to simply assert that the discovery it seeks relates to certain causes of action in its complaint if those legal theories are incorrect, and if the discovery already taken shows that there is no basis (and never was) for the Complaint's highly speculative assertions that MSC intentionally breached the contracts as part of a conscious scheme. And Complainant is not entitled to discovery of confidential information simply because a protective order has been entered; the information still must be shown to be properly discoverable.

II. LEGAL STANDARD

The Commission's Rules entitle parties to discovery "regarding any nonprivileged matter that is relevant to any party's claim or defense—including the existence, description, nature, custody, condition, and location of any documents or other tangible things and the identity and location of persons who know of any discoverable matter."³⁵ The Commission's Rules authorize requests to produce documents including data or data compilations "stored in any medium from which information can be obtained either directly or, if necessary, after translation by the responding party into a reasonably usable form."³⁶ In responding to interrogatories, the responding party may answer by producing business records but must "specify[] the records that must be reviewed, in sufficient detail to enable the interrogating party to locate and identify them as readily as the responding party could."³⁷

³⁵ 46 C.F.R. § 502.141(e)(1).

³⁶ 46 C.F.R. § 502.146(a)(1)(i).

³⁷ 46 C.F.R. § 502.145(d)(1).

When a party from whom discovery is sought raises undue burden or cost of discovery as an objection, they “must show that the information is not reasonably accessible because of undue burden or cost.”³⁸ Even when the producing party makes such a showing, “the presiding officer may nonetheless order discovery from such sources if the requesting party shows good cause.”³⁹

“In proceedings under this part, for situations which are not covered by a specific Commission rule, the Federal Rules of Civil Procedure will be followed to the extent that they are consistent with sound administrative practice.”⁴⁰ “A litigant cannot limit its discovery so as to ascribe unto itself the role of judge and jury.” *Novelty, Inc. v. Mountain View Mktg., Inc.*, 265 F.R.D. 370, 378 (S.D. Ind. 2009); *see also, e.g., Johnson v. Kraft Foods N. Am., Inc.*, 236 F.R.D. 535, 541 (D. Kan. 2006) (“a party may not unilaterally withhold information or documents that are responsive to a discovery request” based on that party’s own interpretation of relevance); *Champion Foodservice, LLC v. Vista Food Exchange, Inc.*, No. 1:13-cv-1195, 2016 U.S. Dist. LEXIS 1129820, 2016 WL 4468000, at *1 (N.D. Ohio Aug. 23, 2016) (excluding evidence as a sanction against party whose “purported ‘compliance’ [with its discovery obligations] has been based on its own self-serving definition . . . of what constitutes relevant discovery under the Federal Rules” and “applying its own contrived interpretation of what the discovery rules require”).

³⁸ 46 C.F.R. § 502.141(e)(2)(i).

³⁹ *Id.*

⁴⁰ 46 C.F.R. § 502.12.

COUNTERSTATEMENT TO LEGAL STANDARD

The discovery rules, like all of the Commission's procedural rules, must be "construed to secure the just, speedy, and inexpensive determination of every proceeding." 46 C.F.R. § 502.1. Discovery should not be ordered where it subjects a party to undue burden or unnecessary expense, or where the burden or expense of the proposed discovery outweighs its likely benefit. *See* Rule 141(e)(2)(ii)(C), 46 C.F.R. §502.141(e)(2)(ii)(C). Discovery should also not be ordered where it would be unreasonably cumulative or duplicative, or can be obtained from some other source that is more convenient, less burdensome, or less expensive. *See* Rule 141(e)(2)(ii)(A), 46 C.F.R. §502.141(e)(2)(ii)(A). Complainant's motion to compel ignores all of these standards.

One way to provide for the just, speedy, and inexpensive determination of a proceeding, and to avoid burdensome and expensive discovery that outweighs its likely benefit, is to focus discovery initially on certain limited and dispositive issues, and reserve additional discovery only if the initial discovery does not in fact prove dispositive. Indeed, Your Honor suggested exactly that course of action in another pending case:

The parties are encouraged to identify ways to limit the time and expense associated with this proceeding. Specifically, the parties are instructed to discuss whether there are facts to which they could stipulate, whether it would be helpful to initially limit discovery (for example to a limited geographic area or time period), and whether it would be helpful to conduct limited discovery prior to filing a motion seeking summary decision, with additional discovery permitted if the motion is denied.⁴¹

MSC has proposed such an approach since the beginning of the discovery period, and continues to believe it is the only rational way to approach the discovery in this case, which

⁴¹ Order Denying Respondents' Motion For Leave To File Interlocutory Appeal, *Intermodal Motor Carriers Conference, American Trucking Ass'n v. Ocean Carrier Equipment Management Ass'n*, Dkt. No. 20-14, at 9 (Jan. 29, 2021).

depends fundamentally on allegations that MSC has not fulfilled its contractual responsibilities that Complaint uses as a basis to allege claims that are implausible, unsupported and legally insufficient.

Complainant cites case law that a litigant may not act as “judge and jury,” but those cases are entirely irrelevant to the circumstances of this case. MSC has not, as was done in those cases, sought to provide only information helpful to its cause or to arbitrarily limit its responses. *Cf. Novelty, Inc. v. Mountain View Marketing, Inc.*, 265 F.R.D. 370, 378 (S.D. Ind. 2009)(party provided only information it considered helpful). MSC has provided substantial and complete discovery on the core issues in the case, and sought to limit discovery that is highly burdensome and highly likely to prove entirely unnecessary. The other cases Complainant cites are even further afield. *Johnson v. Kraft Foods N. Am., Inc.*, 236 F.R.D. 535, 541 (D. Kan. 2006) simply held, for example, that “if a party intends to withhold information or documents responsive to a discovery request based on lack of relevancy, an objection based on lack of relevancy must be lodged in the responsive pleading.” MSC has made its objections clear.

Courts “frequently deny discovery when the party requests voluminous discovery where only a small fraction of the produced documents may be relevant. Courts often call such attempts ‘fishing expeditions.’” *U.S. v. Kellogg Brown & Root Servs., Inc.* 284 F.R.D. 22, 36-37 (D.D.C. 2012). Courts should not “endorse ‘fishing expeditions,’ discovery abuse and inordinate expense involved in overbroad and far-ranging discovery requests,” but rather should “tailor discovery ‘to the issues involved in the particular case.’” *Id.* at 37 (quoting *Hardrick v. Legal Servs. Corp.*, 96 F.R.D. 617, 618 (D.D.C. 1983)). “[A]ll discovery is subject to the balancing test ... that requires a court to limit the discovery ‘otherwise allowed by these rules’ if the burden outweighs its likely

benefit.” *Prasad v. George Washington Univ.*, 323 F.R.D. 88, 91 (D.D.C. 2017)(quoting *Intervet, Inc. v. Merial Ltd.*, 252 F.R.D. 47, 49 (D.D.C. 2008)).

As will be set forth more fully in response to each of Complainant’s specific requests below, MSC has both sought and provided discovery that is tailored to the particular issues central to this case, and has objected to Complainant’s requests for voluminous discovery that goes far beyond those issues. Complainant’s motion to compel that discovery should be denied, or in the alternative its consideration should be deferred until the parties complete discovery on those core issues and a dispositive motion filed based on them. MSC commits to file such a motion within 10 days of the end of discovery as to those issues.

III. ARGUMENT

Complainant sets forth below, in accordance with Paragraph 11 of the Initial Order in this proceeding, the text of each MCS Discovery Request at issue, Respondent’s response, the attempts to secure a sufficient response, and why the response is insufficient. For efficiency’s sake, and in light of the substantial overlap between the MCS RFPs and the MCS Interrogatories, the MCS Discovery Requests are grouped together by general topic and Respondent’s response thereto, with supporting arguments applicable to each group. Complete copies of the MCS Discovery Requests, including all instructions and definitions, and Respondent’s responses and objections thereto, are attached to the accompanying Reynolds Declaration.⁴²

A. Respondent’s Improper General Objections to the MCS Discovery Requests Seek to Avoid Proper Discovery Entirely

In addition to its specific objections to the MCS Discovery Requests, which are discussed topically below, Respondent made general objections to the MCS Discovery Requests that contend

⁴² Reynolds Decl. Exs. 1–4.

that “[d]iscovery already exchanged between the parties demonstrates that there is no basis for any of Complainant’s Shipping Act claims and that this proceeding was abusive and should never have been filed” and that “Complainant’s attempt to make this case more than a simple breach of contract case . . . depends on a series of entirely unsupported and implausible assertions.”⁴³

These objections, impermissibly based on Respondent’s own self-serving interpretation of initial discovery, are merely attempts by Respondent to avoid its discovery obligations without actually challenging the sufficiency of Complainant’s Complaint. These objections improperly seek to achieve in the context of discovery what Respondent could have sought, but chose not to seek, by means of a motion to dismiss or for judgment on the pleadings. Instead of requesting that the Presiding Officer rule on the legal sufficiency and scope of Complainant’s claims, Respondent arrogates that authority to itself, and thereby seeks to deprive Complainant of the very information that is necessary to prove the claims advanced in the Complaint.

Respondent notably does not argue in these objections that the MCS Interrogatories are not relevant to the claims in the Complaint. Respondent cannot simply “ascribe unto itself the role of judge and jury” by unilaterally refusing to respond to the MCS Discovery Requests based on its own assertion that Complainant’s claims lack merit. *Novelty, Inc.*, 265 F.R.D. at 378.

Perplexingly, Respondent also objects to the MCS Interrogatories based on the timing of their service.⁴⁴ Complainant served the MCS Interrogatories on October 7, 2021, more than two months before the December 28, 2021 deadline to serve such discovery (and, notably, after Respondent had already served both RFPs *and* interrogatories on Complainant). Contrary to Respondent’s objection, Complainant never represented that it believed any of the MCS

⁴³ Reynolds Decl. Ex. 4 at 1–2; Reynolds Decl. Ex. 3 at 2.

⁴⁴ Reynolds Decl. Ex. 4 at 3.

Interrogatories were not necessary. To the contrary, on a November 2, 2021 call, counsel discussed that some of the parties' disputes over the scope of the *MCS RFPs* might effectively be resolved by Respondent's responses to the MCS Interrogatories. Instead, Respondent refused to provide a substantive response to a single one of the MCS Interrogatories. Far from any alleged abusive motive, Complainant is simply seeking to propound relevant written discovery that is directly relevant to the claims and defenses pending in this action.

COUNTERSTATEMENT

As set forth more fully above, at pp. 4-13, the assertion that MSC seeks to "avoid legitimate discovery entirely" is irresponsible hyperbole. MSC has provided substantial, and it believes complete, discovery on the core issues in this case: whether Complainant properly booked or sought to book the containers it alleges MSC did not properly carry, and, if so, why MSC did not carry it. MSC is providing the witnesses Complainant has noticed on these issues on the dates on which Complainant has noticed them. MSC has taken the position that it should not be put to the expense and burden of voluminous discovery unless the Complainant has shown some basis or need for it; nor should it be put to that expense and burden if the discovery will be wholly unnecessary if Complainant cannot raise a material issue of fact as to the core issue in the case: whether MSC's failure to carry the 59 FEUs that are the basis of Complainant's claims can constitute a Shipping Act claim. Complainant's refusal to consider a more efficient means of proceeding, particularly as its case withers, raises the strong inference that the speedy and efficient resolution of this proceeding is not its primary goal.

Complainants' mischaracterizations of MSC's positions on the interrogatories are addressed with respect to the specific interrogatories below. Complainants' assertion that MSC somehow opened itself up to pointless discovery based on incorrect legal theories by not moving

to dismiss the Complaint is addressed at pp. 10 &16 above. Complainants' assertion that the parties and Your Honor should blind themselves to what the discovery in this case has already shown in assessing what further discovery might be appropriate is understandable given that the substantial discovery so far has entirely undermined Complainants' claims, which were very shaky to start with, *see* pp. 4-13, *supra*, but is not conducive to the just, speedy, and inexpensive determination of this proceeding.

B. Interrogatories 1–3, 5–7: Respondent's Refusal to Identify Individuals with Knowledge Impedes Complainant's Ability to Identify Potential Deponents and Determine the Sufficiency of Respondent's Document Production

Complainant's Interrogatory No. 1: Identify each person from whom/which You obtained information in order to answer these Interrogatories.

Respondent's Response to Interrogatory No. 1. Persons who have information relevant to the proceeding are identified in the documents Complainant and MSC produced on November 5, 2021, in response to each party's First Requests for Production of Documents. The objections contained herein are made by undersigned counsel and are supported by those documents as well.

Complainant's Interrogatory No. 2: Identify each document You referred to in order to respond to these Interrogatories.

Respondent's Response to Interrogatory No. 2. Documents contained in the productions of Complainant and MSC on November 5, 2021, in response to each party's First Requests for Production of Document, support the objections contained herein.

Complainant's Interrogatory No. 3: Identify each person with knowledge of the facts underlying MCS's claims against You and/or Your defenses to MCS's claims.

Respondent's Response to Interrogatory No. 3. MSC objects to this Interrogatory on the basis that persons with knowledge of the underlying facts that may remain relevant to this proceeding are identified in the parties' Initial Disclosures and in the documents Complainant and MSC produced on November 5, 2021, in response to each party's First Requests for Production of Documents, and that Complainant has not provided any basis to require MSC to undertake the burden of making any further response on the matter.

Complainant's Interrogatory No. 5: Identify each person who/that acted on Your behalf concerning MCS or MCS Cargo.

Respondent's Response to Interrogatory No. 5. MSC objects to this Interrogatory on the basis that it is overly broad and unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence, in that it makes no effort to limit the scope to matters that might be relevant to the allegations of the Complaint. The Complaint makes no allegation, for example, that MSC failed to properly carry cargo that it accepted and undertook to carry. The request is also vague in that it does not make clear what is meant by "acted on [MSC's] behalf" and would also require MSC to potentially identify numerous persons who dealt with MCS and the contract, but did not have important roles with respect to the matters relevant to the Complaint. MSC further objects to this Interrogatory as unduly burdensome in that it seeks information reflected in the documents Complainant and MSC produced on November 5, 2021, in response to each party's First Requests for Production of Documents. MSC further objects to this Interrogatory on the basis that Complainant is well aware of the persons who dealt with MSC during the time period relevant to the Complaint, both from its own experience and the documents exchanged between the parties, and has not provided any basis to require MSC to undertake the burden of making any further response on the matter.

Complainant's Interrogatory No. 6: Identify each person who/that communicated with MCS or any of the Intermediaries concerning MCS or MCS Cargo.

Respondent's Response to Interrogatory No. 6. MSC objects to this Interrogatory, because it is overly broad and unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence, in that it makes no effort to limit the scope to matters that might be relevant to the allegations of the Complaint. The Complaint makes no allegation, for example, that MSC failed to properly carry cargo that it accepted and undertook to carry. The request would also require MSC to potentially identify numerous persons who communicated with MCS concerning MCS or MCS cargo but did not have important roles with respect the matters relevant to the Complaint. MSC further objects to this Interrogatory as unduly burdensome in that it seeks information reflected in the documents Complainant and MSC produced on November 5, 2021, in response to each party's First Requests for Production of Documents. MSC further objects to this Interrogatory on the basis that Complainant is well aware of the persons who dealt with MSC on matters that may remain relevant to the Complaint, both from its own experience and the documents exchanged between the parties, and has not provided any basis to require MSC to undertake the burden of making any further response on the matter.

Complainant's Interrogatory No. 7: Identify each person who/that received or receives on Your behalf booking requests for transportation by You or notices of space requirements for any shipment tendered or to be tendered under the OCA.

Respondent's Response to Interrogatory No. 7: MSC objects to this Interrogatory, because it is overly broad and unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence, in that it makes no effort to limit the scope to matters that might be relevant to the allegations of the Complaint. The Complaint makes no allegation, for example, that MSC failed to properly carry cargo that it accepted and undertook to carry. The request is also vague in that it does not make clear what is meant by "acted on [MSC's] behalf." MSC further objects to this Interrogatory as overly burdensome in that it seeks information reflected in the documents Complainant and MSC produced on November 5, 2021, in response to each party's First Requests for Production of Documents. MSC further objects to this Interrogatory on the basis that Complainant is well aware of the persons who dealt with MSC on matters that may remain relevant to the Complaint, both from its own experience and the documents exchanged between the parties, and has not provided any basis to require MSC to undertake the burden of making any further response on the matter.

Complainant's Argument:

1. Reasons for Impasse

Prior to Respondent's written objections and complete refusal to answer any of the MCS Interrogatories, during the November 2, 2021 call between counsel, Complainant offered to limit its document requests and the corresponding interrogatories seeking the identity of individuals to those individuals with substantive knowledge of and/or decision-making authority concerning the matters at issue in this case—excluding the reportedly numerous individuals who only communicated concerning Complainant's cargo that was, in fact, carried by MSC (and is therefore not directly implicated by Complainant's claims).

2. Relief Sought

In its objections to Interrogatories 1 through 3 and 5 through 7, as well as a number of other interrogatory objections discussed below, Respondent merely refers generally to the parties' respective document productions. While a responding party may answer an interrogatory by producing business records, Respondent must "specify[]the records that must be reviewed, in sufficient detail to enable [Complainant] to locate and identify them as readily as [Respondent]

could.”⁴⁵ Respondent has failed to do so. The Presiding Officer should order Respondent to (1) identify all individuals with knowledge of facts relevant to the claims and defenses in this matter, (2) identify with specificity any and all documents that Respondent relied upon in responding to these Interrogatories, and (3) identify with specificity each document that Respondent contends is responsive to each of Complainant’s Interrogatories.

COUNTERSTATEMENT

Complainant’s suggestion that it lacks information as to the identity of individuals with “substantive knowledge of and/or decision-making authority concerning the matters at issue in this case” is false, and it has provided no basis for requiring MSC to undertake additional unnecessary identifications. This case is based on Complainant’s assertion that MSC has not carried all the cargo it should have under the contract at two ports, Tianjin and Qingdao. As Complainant well knows, its personnel primarily responsible for seeking bookings under the contract are Brittany Montesano, and Susan Schantzenbach who took over Ms. Montesano’s day to day duties when she went on maternity leave during the relevant period. The person they dealt with directly on these issues for MSC is Thomas DeMarino. When Ms. Montesano and Ms. Schantzenbach sought information from Mr. DeMarino concerning bookings (which discovery has shown was far less often than Complainant’s rhetoric suggests), he checked with Anna Kapica at MSC who then checked with MSC personnel at the port of load. At Qingdao those persons were Oscar Du, Dennis Ren, Alex Yu, and Kevin Zhang, and at Tianjin they were Jack Feng, Mets Nip and Tony Zheng. All of these persons were disclosed to Complainant in the Initial Disclosures MSC served on September 7, 2021, except for Mr. Feng and Mr. Ren who were listed in Complainant’s own disclosures, and their roles and involvement in Complainant’s bookings are made clear in the

⁴⁵ 46 CFR § 502.145(d)(1).

documents the parties have exchanged, as laid out in MSC's responses quoted above. MSC was, and is, aware of no reason why it should have to go through additional busy work to advise Complainant of all of this again rather than simply referring Complainant to the information it already has, and Complainant's motion surely discloses none.

That Complainant has chosen to bother Your Honor, as well as MSC, on this matter demonstrates that its purpose is not to address this litigation expeditiously and efficiently and get to the point, but to impose unnecessary costs on MSC in an apparent attempt to increase the nuisance value of its lawsuit. Complainant has already noticed the depositions of Mr. DeMarino and Ms. Kapica, and MSC has agreed to provide them as noticed. Those depositions can proceed without this additional unnecessary busy work.

Complainant is also already aware -- indeed likely just as aware as MSC or more so -- of another line of personnel involved in its bookings. Complainant uses Expeditors International as its handling agent to place cargo bookings. Its main point of contact there, again as set out in the documents, is Holly Hai, who was listed in Complainant's own disclosures. Expeditors International then selects a booking agent at the port of load from among many available to make bookings with MSC and other carriers. At Qingdao that agent was Shangdong Smart International and the primary point of contact was Ty "Summer" Li, until Expeditors replaced Shangdong Smart with Qingdao JET Marine Logistics and Terry Zheng. At Tianjin the booking agent was Penavico (Li Nan). Again, all of these persons are known to Complainant, and were listed in Complainant's own initial disclosures.

The booking and handling agents further illustrate how Complainant has chosen to proceed in this litigation. Although all of these persons were well known to Complainant in early September, either as Complainant's own handling agent or as a booking agent selected by the

Complainant's handling agent, Complainant waited to subpoena them until the middle of November, less than four weeks before the end of the discovery period. There is no apparent reason Complainant could not have subpoenaed them earlier, yet now Complainant is seeking to extend the discovery period on the basis that it cannot get responses to these third-party subpoenas in time. Indeed, as shown by the correspondence between counsel that Complainant has attached to its motion, rather than seeking this information in October and the first half of November, Complainant spent its time with extensive letter writing campaigns rejecting MSC's attempt to focus discovery on the core issues of Complainant's booking or attempted booking of cargo and MSC's response, and instead demanding that MSC provide a host of burdensome and irrelevant information.

As noted above, after the depositions of Mr. DeMarino, Ms. Kapica, Ms. Montesano, and Ms. Schantzenbach are taken, all of which have been noticed within the discovery period, MSC expects to file a motion for summary disposition of this case. If when that motion is filed Complainant remains unable to obtain information from the third parties it has subpoenaed, it can set forth in its opposition to the motion what facts it believes it might obtain from those subpoenas that are material to its claims, and its cause for not having issued the subpoenas sooner. For present purposes, however, MSC respectfully submits that it is enough to conclude that Complainant's motion to compel on these interrogatories should be denied.

C. FPs 5–7: Respondent's Refusal to Produce Communications Concerning Complainant Deprives Complainant of Essential Information Relevant to Its Causes of Action

Complainant's Request No. 5: All documents and communications with MCS.

Respondent's Response to Request No. 5. MSC objects to this Request as overly broad and unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence in that it makes no effort to limit the request to matters that might be relevant to the allegations of the Complaint. The request is also vague in that its request for "documents . . . with MCS" is senseless. To the

extent that documents reflecting communications with MCS are relevant and reasonably calculated to lead to the discovery of admissible evidence, MSC will provide them as stated in response to other Requests that overlap with this Request.

Complainant's Request No. 6: All documents and communications with any person or entity concerning MCS or MCS Cargo, including any of the Intermediaries.

Respondent's Response to Request No. 6. MSC objects to this Request as overly broad and unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence in that it makes no effort to limit the request to matters that might be relevant to the allegations of the Complaint. The request is also vague in that its request for "documents . . . with any person" is senseless. To the extent that documents reflect communications concerning cargo that MCS demonstrates that it booked or attempted to book under the MCS Service Contract and that was not in fact carried, MSC will provide those Documents as stated in response to Request No. 8.

Complainant's Request No. 7: All documents and communications concerning MCS or MCS Cargo.

Respondent's Response to Request No. 7. This Request appears to entirely duplicate Requests Nos. 5 and 6, and MSC incorporates by reference its responses and objections to Requests Nos. 5 and 6. To the extent that documents reflect communications concerning cargo that MCS demonstrates it booked or attempted to book under the MCS Service Contract and that was not in fact carried, MSC will provide those Documents as stated in response to Request No. 8.

Complainant's Argument:

1. Reasons for Impasse

In the course of negotiating the scope of Complainant's Requests 5 through 7, Complainant offered to narrow those requests to documents and communications concerning sailings scheduled for May through August 2021 from the ports of Qingdao, China and Tianjin, China to California. Respondents sought to narrow these requests to only those communications relating to particular bookings requests, arguing that the Complaint is nothing more than a breach of contract action and that Complainant should be required to make further evidentiary demonstrations to Respondent prior to any obligation of Respondent to provide discovery (discussed further below). During the November 2, 2021 teleconference, Respondent agreed to provide discovery relating to specific

attempts to book Complainant's cargo and any correspondence complaining of difficulties in booking carriage, and agreed to reformulate its objections and responses to reflect its intended scope of production. To date, however, no such amended response has been forthcoming, and it is impossible to determine from the documents produced what criteria Respondent used to determine the scope of its production in response to these requests.

2. Relief Sought

Requests 5 through 7 seek documents and communications with and about Complainant and Complainant's cargo. These categories are essential to Complainant's causes of action alleging discriminatory and preferential treatment, as well as refusal to deal with Complainant in providing service pursuant to the Service Contract—necessarily implicating not only communications between the parties, but also documents and communications *internal* to Respondent, and documents and communications with *intermediaries*, concerning Complainant, Complainant's cargo, and the Service Contract. The latter two categories are especially important because, while Complainant's own records may contain direct communications between the *parties*, clearly it would not contain Respondent's internal communications, and much of the relevant communication here was necessarily through intermediaries, including Complainant's agent and Respondent's booking agents. Although the Presiding Officer has issued subpoenas to several of these intermediaries, Complainant should not be forced to procure from non-parties documents and communications that are already in Respondent's possession, custody, or control. Complainant requests that Respondent be compelled to produce all documents and communications responsive to Requests 5 through 7, subject to the time and geographic limitations proposed by Complainant.

COUNTERSTATEMENT

As stated above, MSC has attempted to provide, and believes it has provided, all documents concerning bookings and attempted bookings, and MSC's actions with respect to requests for service it received from Complainant or those acting on its behalf, for sailings scheduled for May through July 2021 from the ports of Qingdao, China and Tianjin, China to California on which Complainant is alleging it did not receive contractually allocated service, just as it said it would do in the meet and confer conference Complainant cites. Complainant has provided no basis to suggest that the production is incomplete. MSC has provided some documentation as to August sailings, but has not made an exhaustive search for and production of such documents, because Complainant has stated that it has not had problems with its bookings in August and has presented no claims relating to August bookings or sailings. The motion to compel on these requests should be denied.

D. RFPs 8–10, 13; Interrogatory 8: Respondent's Refusal to Provide Discovery Relevant to Complainant's Attempts to Book Cargo Pursuant to the Service Contract Denies Complainant Access to Documents That Go to the Heart of the Conduct Alleged in the Complaint.

Complainant's Request No. 8: All documents and communications concerning any booking or attempted booking of transportation by You of MCS Cargo, including Your acceptance or rejection of each such booking or attempted booking and the reasons therefor.

Respondent's Response to Request No. 8. MSC objects to this Request as overly broad and unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence in that it makes no effort to limit the request to matters that might be relevant to the allegations of the Complaint. For example, it seeks documents and communications concerning bookings and port ranges as to which MCS is making no claim. In addition, MCS has not alleged, nor provided any information to establish, that its bookings or attempted bookings complied with the Contract. Notwithstanding and without waiving the foregoing objections, MSC will provide documents reflecting communications concerning the booking of cargo that MCS demonstrates that it booked or attempted to book under the MCS Service Contract and that cargo was not in fact carried.

Complainant's Request No. 9: All documents and communications concerning the tender to You of any MCS Cargo.

Respondent's Response to Request No. 9. MSC objects to this Request as overly broad and unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence in that it makes no effort to limit the request to matters that might be relevant to the allegations of the Complaint. For example, it seeks documents and communications concerning tenders as to which MCS is making no claim. In addition, MCS has not alleged, nor provided any information to establish, that its tenders or attempted tenders of cargo that was allegedly not carried in violation of the Contract complied with the Contract. Notwithstanding and without waiving the foregoing objections, MSC will provide documents reflecting communications concerning the tender of cargo that MCS demonstrates it tendered under the MCS Service Contract and that was not in fact carried.

Complainant's Request No. 10: All documents and communications concerning any notice provided to You of MCS's space requirements for any shipment tendered or to be tendered under the OCA, including the date each such notice was sent to You, the date each such notice was received by You, the scheduled sailing date of Your vessel for which each such notice was provided as of the date each such notice was sent to You, the scheduled sailing date of Your vessel for which each such notice was provided as of the date each such notice was received by You, and the actual sailing date of Your vessel for which each such notice was provided.

Respondent's Response to Request No. 10. MSC objects to this Request on the basis that the phrase "notice provided to You of MCS's space requirements" is vague; nor is it clear what difference, if any, is intended between the phrase "notice provided to You of MCS's space requirements," and the terms "booking" or "attempted booking" in Request No. 8. MSC further objects to this Request as unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence in that it makes no effort to limit the request to matters that might be relevant to the allegations of the Complaint. For example, to the extent it is understandable, it appears to seek documents and communications concerning bookings and port ranges as to which MCS is making no claim. In addition, MCS has not alleged, nor provided any information to establish, that its provision of such "Notice" complied with the Contract. Notwithstanding and without waiving the foregoing objections, MSC will provide documents reflecting communications concerning cargo that MCS demonstrates that it booked or attempted to book under the MCS Service Contract and that cargo was not in fact carried.

Complainant's Request No. 13: All documents and communications concerning any MCS Cargo not accepted by You for transportation, including the reasons therefor.

Respondent's Response to Request No. 13. MSC objects to this Request as overly broad and unduly burdensome and not reasonably calculated to lead to the

discovery of admissible evidence in that it makes no effort to limit the request to matters that might be relevant to the allegations of the Complaint. For example, it seeks documents and communications concerning cargo as to which MCS is making no claim and seeks information as to the carriage of cargo even though the Complaint makes no allegation that MSC failed to properly carry cargo that it accepted and undertook to carry (and does not allege or provide any information to establish that MCS' bookings or attempted bookings complied with the Contract.). Notwithstanding and without waiving the foregoing objections, MSC will provide documents reflecting communications concerning the booking of cargo that MCS demonstrates that it booked or attempted to book under the MCS Service Contract and that cargo was not in fact carried.

Complainant's Interrogatory No. 8: Identify each instance in which You contend that MCS, in an untimely or otherwise improper fashion, requested space for any MCS Cargo or shipment on any MSC sailing, provided notice of its space requirements for shipments to be tendered under the OCA, and/or tendered any MCS Cargo or shipment under the OCA, including the following information for each such instance:

- a. the date and means of the request/tender,**
- b. the date and means of Your response to the request/tender,**
- c. the reason(s) You considered the request/tender to be untimely or improper, and**
- d. identify all persons with knowledge of the matters requested in this Interrogatory.**

Respondent's Response to Interrogatory No. 8. MSC objects to this Interrogatory as unduly burdensome in that it seeks information reflected in the documents Complainant and MSC produced on November 5, 2021, in response to each party's First Requests for Production of Documents. Complainant has not provided any basis to require MSC to undertake the burden of making any further response on the matter.

Complainant's Argument:

1. Reasons for Impasse

Similar to Requests 5 through 7, Complainant offered to narrow Requests 8 through 10 and 13 by both time and geography, to documents and communications concerning sailings scheduled for May through August 2021 from the ports of Qingdao, China and Tianjin, China to California. Respondents again sought to narrow these requests to only those communications relating to

specifically identified booking requests. During the November 2, 2021 teleconference, Respondent agreed to provide discovery concerning any attempts to book cargo for Complainant or any correspondence complaining of the difficulties in booking carriage, and agreed to reformulate its objections and responses to reflect its intended scope of production. To date, however, no such amended response has been forthcoming and it is impossible to determine from the documents produced what criteria Respondent used to determine the scope of its production.

2. Relief Sought

Requests 8 through 10 and 13 and Interrogatory 8 seek documents and communications concerning attempts by Complainant or intermediaries to book carriage of Complainant's cargo pursuant to its Service Contract with Respondent. As Complainant has repeatedly explained to Respondent's counsel in writing and by telephone, Complainant's causes of action are not merely premised on a list of booking requests and rejections or cancellations thereof, but instead on a pattern of behavior by Respondent in which Complainant and its agent were repeatedly fobbed off by Respondent and/or Respondent's booking agents despite ongoing requests and follow-ups for information and confirmations concerning Complainant's space allocations pursuant to the Service Contract and the availability of space on Respondent's sailings, and were thereby prevented from even making booking requests. These requests go to the heart of that alleged conduct that Complainant contends violates the Shipping Act. Complainant requests that Respondent be compelled to produce all documents and communications responsive to Requests 8 through 10 and 13 and Interrogatory 8, with the limitations of time and geography proposed by Complainant.

COUNTERSTATEMENT

As stated above, MSC has attempted to provide, and believes it has provided, all documents concerning bookings and attempted bookings and MSC's actions with respect to requests for

service it received from Complainant or those acting on its behalf, as to sailings scheduled for May through July 2021 from the ports of Qingdao, China and Tianjin, China to California on which Complainant is alleging it did not receive contractually allocated service, just as MSC said it would do in the meet and confer conference Complainant cites. Complainant has provided no basis to suggest that the production is incomplete. MSC has provided some documentation as to August sailings, but has not made an exhaustive search for and production of such documents, because Complainant has stated that it has not had problems with its bookings in August and has presented no claims relating to August bookings or sailings. The motion to compel on these requests should be denied.

Complainant states that these requests “go to the heart of the conduct alleged in the Complaint.” MSC largely agrees, and notes that the requests expressly reference whether MSC has complied with its contractual obligations. This is, of course, further evidence that Complainant has brought nothing more than a breach of contract claim, with a few additional allegations to try to dress it up as a Shipping Act claim, many now abandoned and none in any way supported. It is also why MSC has proposed since the outset of the litigation that discovery be initially limited to these core matters, and that additional discovery be deferred until those core matters can be addressed, which MSC believes should dispose of the entire case.

E. RFPs 11–12: Respondent’s Refusal to Provide Documents Concerning Successful Carriage of MCS Cargo Deprives Complainant of Documents Relevant to Respondent’s Defense That Complainant Failed to Properly Request Carriage

Complainant’s Request No. 11: All documents and communications concerning any MCS Cargo accepted by You for transportation.

Respondent’s Response to Request No. 11. MSC objects to this Request as overly broad and unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence in that it makes no effort to limit the request to matters that might be relevant to the allegations of the Complaint. The Complaint makes no allegation that MSC failed to properly carry cargo that it accepted and

undertook to carry. Notwithstanding and without waiving the foregoing objections, MSC will provide documents reflecting communications concerning the booking of cargo that MCS demonstrates that it booked or attempted to book under the MCS Service Contract and that cargo was not in fact carried.

Complainant's Request No. 12: All documents and communications concerning transportation provided by You of MCS Cargo.

Respondent's Response to Request No. 12. MSC objects to this Request as overly broad and unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence in that it makes no effort to limit the request to matters that might be relevant to the allegations of the Complaint. The Complaint makes no allegation that MSC failed to properly carry cargo that it accepted and undertook to carry. The request also appears duplicative of Request No. 11. Notwithstanding and without waiving the foregoing objections, MSC will, as stated in response to Request No. 11, provide documents reflecting communications concerning the booking of cargo that MCS demonstrates that it booked or attempted to book under the MCS Service Contract and that cargo was not in fact carried.

Complainant's Argument:

1. Reasons for Impasse

During teleconferences between counsel, Complainant offered to narrow Requests 11 and 12 to documents relating to sailings scheduled for May through August 2021 from the Chinese ports at issue. Counsel also discussed that Complainant may not need the reportedly voluminous documents and communications concerning the **actual carriage** of Complainant's cargo by Respondent, and that Complainant would be willing to limit these requests to documents and communications concerning the successful **booking** of carriage. Respondents contend that they should not have to produce any documents relating to successful carriage of Complainant's cargo, because the Complaint relates to Respondent's failures to carry Complainant's cargo.

2. Relief Sought

Requests 10 and 11 properly seek documents and communications relating to Respondent's defenses that Complainant's claims are barred by Complainant's own alleged "inaction, negligence or other fault" and that Complainant's claimed damages "were proximately, directly,

and solely caused by the acts of third persons over whom MSC had and has no direction or control.”⁴⁶ Documents and communications demonstrating the process by which Complainant or its agent *successfully* booked carriage are relevant to show the course of conduct between the parties, and Complainant believes such documents and communications will demonstrate that there was no meaningful difference in the actions of its agent with respect to successful and unsuccessful requests to book with Respondent and Respondent’s booking agents, undercutting Respondent’s defenses in this regard. Complainant requests that Respondent be compelled to produce all documents and communications responsive to Requests 10 and 11, with the limitations of time and geography proposed by Complainant and the limitation to documents and communications concerning successful *booking* (as opposed to the actual carriage) of Complainant’s cargo.

COUNTERSTATEMENT

Complainant argues that MSC should be required to provide discovery as to sailings regarding which Complainant has not made a claim, based on speculation that MSC may have excused a contractual violation in some cases entitling Complainant to be excused from contractual violations in other cases. Although Complainant itself would of course be aware if there were such cases, it has not provided any evidence or any reason to believe that there are any such bookings. Nor has Complainant provided any legal authority for the proposition that if MSC were to have overlooked or excused a contractual violation in one case -- and again it does not provide any reason to believe there are any such cases, much less cite any evidence that there are any, it would be required to do so in another case. Finally, as to Qingdao, Complainant has alleged that there were *no* successful bookings from May to July in any event (and discovery has shown there

⁴⁶ Answer at 17.

were only three attempted bookings). By August, Complainant's handling agent had replaced the booking agent at Qingdao and things were back on track; this had nothing to do with any purported excusing of Complainant's contractual violations.

These requests are thus based merely on speculation and are factually and legally unsupported. The motion to compel on these requests should be denied.

F. RFPs 14–15; Interrogatories 9–10: Respondent's Refusal to Provide Discovery Relating to Its Assertions of Force Majeure Improperly Deprives Complainant of Discovery Concerning Respondent's Own Defense That Nonperformance Was Excused by Force Majeure

Complainant's Request No. 14: All documents and communications concerning any Force Majeure event affecting the OCA or Your obligations or performance under the OCA, including any notice or notification of any Force Majeure event pursuant to the OCA.

Respondent's Response to Request No. 14. MSC objects to this Request as overly broad and unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence in that it makes no effort to limit the request to matters that might be relevant to the allegations of the Complaint. MSC also objects to this request to the extent that it seeks production as to matters of common knowledge that are well known to MCS, given that the maritime trade press, among other sources, is routinely reporting unprecedented dislocations in international ocean shipping caused by substantial increases in demand at the same time that unprecedented port congestion and resulting vessel delays have effectively limited available vessel capacity and created substantial operational difficulties for carriers. Notwithstanding and without waiving the foregoing objections, MSC will provide documents responsive to this request that relate to the booking of cargo that MCS demonstrates that it booked or attempted to book under the MCS Service Contract and that cargo was not in fact carried.

Complainant's Request No. 15: All documents and communications concerning any notice or notification by You of force majeure to any Shipper from January 1, 2020 through the present.

Respondent's Response to Request No. 15. This request duplicates Request No. 14, and MSC incorporates its objections and response to that Request. MSC will provide responsive documents as to force majeure notifications relating to the booking of cargo that MCS demonstrates that it booked or attempted to book under the MCS Service Contract and that cargo was not in fact carried.

Complainant's Interrogatory No. 9: Identify any Force Majeure event that You contend affected the OCA or MSC's obligations or performance under

the OCA, including the date and manner of any notice or notification of any Force Majeure event pursuant to the OCA.

Respondent's Response to Interrogatory No. 9. MSC objects to this Interrogatory as overly broad and unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence, in that it makes no effort to limit the scope to matters that might be relevant to the allegations of the Complaint, including as to time period. MSC further objects to the extent the Interrogatory seeks production as to matters of common knowledge that are well known to MCS, given that the national and maritime trade press, among other sources, have routinely reported throughout the relevant time period unprecedented dislocations in international ocean shipping caused by substantial increases in demand at the same time that unprecedented port congestion and resulting vessel delays have effectively limited available vessel capacity and created substantial operational difficulties for carriers. MSC further objects to this Interrogatory as unduly burdensome in that it seeks information reflected in the documents Complainant and MSC produced on November 5, 2021, in response to each party's First Requests for Production of Documents. Complainant has not provided any basis to require MSC to undertake the burden of making any further response on the matter.

Complainant's Interrogatory No. 10: Identify any notice or notification by You of force majeure to any Shipper from January 1, 2020 through the present.

Respondent's Response to Interrogatory No. 10. MSC objects to this Interrogatory, because it appears to entirely duplicate Interrogatory No. 9, and incorporates its responses and objections to Interrogatory No. 9. MSC further objects to this Interrogatory as unduly burdensome in that it seeks information reflected in the documents Complainant and MSC produced on November 5, 2021, in response to each party's First Requests for Production of Documents. Complainant has not provided any basis to require MSC to undertake the burden of making any further response on the matter.

Complainant's Argument:

1. Reasons for Impasse

During the November 2, 2021 teleconference, Respondent indicated that it would not provide discovery relating to assertions of force majeure relating to any party other than Complainant, and that Complainant should already be aware of any notice of force majeure to it.

2. Relief Sought

Requests 14 and 15 and Interrogatories 9 and 10 seek discovery directly relating to Respondent's allegations in its answer of "unprecedented dislocations" and "substantial operational difficulties" and "challenges", and its claimed defense that any "alleged nonperformance of the contract or violations alleged herein were excused by force majeure and MSC is not responsible for damages resulting therefrom".⁴⁷ Request 14 calls for documents and communications relating to any alleged force majeure event affecting Respondent's obligations under its Service Contract with Complainant, whether or not communicated to Complainant. Further, any invocation of force majeure, even relating to parties other than Complainant, is relevant to whether Respondent has genuinely experienced forces or conditions outside of its control that would excuse performance under the Service Contract. Respondent cannot put a matter at issue by raising it as a defense in its answer and then refuse to provide discovery concerning that very defense. Complainant requests that Respondent be compelled to produce all documents and communications responsive to Requests 14 and 15, and to answer Interrogatories 9 and 10.

COUNTERSTATEMENT

Complainant mischaracterizes the meet and confer discussion it references; indeed its purported description of MSC's position is incoherent. MSC has provided to the best of its ability documentation of its notices to the market of sailings from Tianjin and Qingdao that could not be undertaken due to port congestion or other factors outside MSC's control. Complainant has had these documents since November 5, 2021, and has not provided any basis to suggest the production is incomplete. The motion to compel on these requests should be denied.

⁴⁷ Answer ¶¶ 2, 15, 32 & at 17.

G. RFPs 23–24; Interrogatory 17: Respondent’s Refusal to Respond to Requests Relating to Sailings That Did Not Occur and Alternative Sailings Offered to Complainant Deprives Complainant of Discovery Relating to Respondent’s Defenses

Complainant’s Request No. 23: Documents sufficient to show any sailing of any vessel on which MCS or any other person booked or attempted to book transportation by You of MCS Cargo, or provided You notice of MCS’s space requirements for any shipment tendered or to be tendered under the OCA, that was cancelled, blanked, voided, or that otherwise did not actually sail, or the origin or destination of which was changed, and the reasons therefor.

Respondent’s Response to Request No. 23. MSC objects to this Request as overly broad and unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence in that it makes no effort to limit the request to matters that might be relevant to the allegations of the Complaint and seeks documents and communications concerning bookings and port ranges as to which MCS is making no claim and that do not even involve MCS, and incorporates the objections stated with respect to Request Nos. 20 and 21. Notwithstanding and without waiving the foregoing objections, MSC will provide documents reflecting the sailing status of any vessel on which MCS demonstrates that it booked or attempted to book cargo under the MCS Service Contract and that cargo was not in fact carried.

Complainant’s Request No. 24: All documents and communications concerning any vessel or sailing offered by You to MCS as an alternative to any booking or attempted booking by MCS or any other person of transportation by You of MCS Cargo, or any notice provided to You of MCS’s space requirements for any shipment tendered or to be tendered under the OCA.

Respondent’s Response to Request No. 24. MSC objects to this Request as overly broad and unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence in that it makes no effort to limit the request to matters that might be relevant to the allegations of the Complaint and seeks documents and communications concerning bookings and port ranges as to which MCS is making no claim and that do not even involve MCS, and incorporates the objections stated with respect to Request Nos. 20 and 21. Notwithstanding and without waiving the foregoing objections, MSC will provide documents reflecting alternatives MSC offered to carry any cargo that MCS demonstrates that it booked or attempted to book under the MCS Service Contract and that cargo was not in fact carried on voyage for which the booking was made or attempted.

Complainant’s Interrogatory No. 17: Identify any planned sailing of any of Your vessels on any of the routes covered by the OCA that was cancelled, blanked, voided, or that otherwise did not actually sail, or the origin or destination of which was changed, and the reasons therefor.

Respondent's Response to Interrogatory No. 17. MSC objects to this Interrogatory as overly broad and unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence, in that it makes no effort to limit the scope to matters that might be relevant to the allegations of the Complaint and seeks information concerning bookings and port ranges as to which MCS is making no claim and that do not even involve MCS. MSC further objects to this Interrogatory as unduly burdensome in that it seeks information reflected in the documents Complainant and MSC produced on November 5, 2021, in response to each party's First Requests for Production of Documents. Complainant has not provided any basis to require MSC to undertake the burden of making any further response on the matter.

Complainant's Argument:

1. Reasons for Impasse

Similar to other requests, Complainant offered to narrow Requests 23 and 24 to documents and communications concerning sailings scheduled for May through August 2021 from the ports of Qingdao, China and Tianjin, China to California. During the November 2, 2021 teleconference, Respondent agreed to reformulate its objections and responses to reflect its intended scope of production. However, no such amended response has been forthcoming, and it is impossible to determine from the documents produced what criteria Respondent used to determine the scope of its production.

2. Relief Sought

Requests 23 and 24 and Interrogatory 17 seek information concerning Respondent's defenses that the damages Complainant has suffered "were proximately, directly, and solely caused by the acts of third persons over whom MSC had and has no direction or control", that "any damages Complainant allegedly incurred resulted from its own inaction, negligence or other fault", and that "MSC's practices were neither unjust nor unreasonable".⁴⁸ Complainant has reasonably and narrowly requested information concerning (1) the contention that the cancellation or other

⁴⁸ Answer at 17.

failure of any relevant sailings to take place was outside of Respondent's control and (2) efforts by either Complainant or Respondent to mitigate injury to Complainant by securing space on alternate sailings. Complainant requests that Respondent be compelled to produce all documents and communications responsive to Requests 23 and 24, with the limitations of time and geography proposed by Complainant.

COUNTERSTATEMENT

Complainant mischaracterizes the meet and confer discussion it references. MSC stated it would provide information showing which sailings were voided between May and July 2021 from the ports of Qingdao and Tianjin, and it has provided such information. There is no basis for Complainant's suggestion that it cannot tell from the production whether the information was provided.⁴⁹

The reasons that MSC and other carriers' sailings have been voided or cancelled in the current environment of port congestion and vessel sailing disruptions are well known and were stated by Complainant's CEO at his deposition: "Well, you know, I recall that some of the shipments, some of the sailings were blanked [sic] because of delays that resulted in the normal course of operations, and that the carriers, you know, were being delayed at ports in the United States or were being delayed as a result of COVID disruptions, the lack of personnel in ports in Asia, and that they could not make those sailings. And that, certainly, is a legitimate reason for some of the blank sailings."⁵⁰ Asked if he had any information when he verified the Complaint that MSC had canceled sailings for some non-legitimate reason, Complainant's CEO gave a

⁴⁹ The information is attached as Exhibit J [MSC 0000298, MSC 0000409-412].

⁵⁰ Master Dep. at 76:1-11.

lengthy answer that could not identify a single fact as to whether there were any, merely stating that some people at his company had suggested some were “questionabl[e].”⁵¹

H. RFPs 5–15, 23, 24: Respondent’s Refusal to Respond to MCS RFPs Unless Complainant First “Demonstrate[s]” Its Case Is Legally Baseless and Deprives Complainant of Discovery Relevant and Necessary to Its Causes of Action

The requests implicated by this argument have already been reproduced in full above, and for the sake of brevity are not reproduced again here.

Complainant’s Argument:

1. Reasons for Impasse

Respondent objects to Requests 5 through 15, 23, and 24 and purports to limit its responses to documents relating only to “cargo that MCS demonstrates that it booked or attempted to book under the MCS Service Contract and that was not in fact carried.” Complainant has expended considerable time and energy since the very early days of this case explaining to Respondent that Complainant’s causes of action implicate not merely a list of specific booking confirmations and rejections, but a course of conduct in which Complainant and its agent were repeatedly fobbed off by Respondent and/or its booking agents, even when Respondent’s failure to allocate space to Complainant pursuant to the Service Contract was brought directly to Respondent’s attention. Each time that Complainant has voluntarily provided Respondent with information in this connection, Respondent has simply “moved the goal posts”, claiming that Complainant’s identification of the time periods, lines of service, and performance metrics at issue was insufficient and asking for more information before Respondent will comply with its discovery obligations.

During the November 2, 2021 conference, Complainant offered to limit these requests to documents and communications relating specifically to sailings from the ports at Qingdao, China

⁵¹ *Id.* at 76:12-79:20 (“I am drawing a blank about the blank sailings.”)

and Tianjin, China to California between May and August 2021. Counsel for Respondent represented that it would not limit its document production to formal requests booked by Complainant and agreed to restate its objection to Requests 5 through 15, 23, and 24 to reflect more accurately the scope of documents Respondent would produce. As of this filing, however, Respondent has not done so, and after review of Respondent's document production, Complainant is not able to determine the completeness of Respondent's response to any of these requests.

2. Relief Sought

As explained in more detail above, Requests 5 through 15, 23, and 24 seek documents and information relevant to each of Complainant's causes of action: i.e., that Respondent violated the Shipping Act by engaging in unjust and unreasonable conduct (Count I) that was inconsistent with the Service Contract (Count II), that unfairly discriminated against Complainant (Count III), giving undue preference to other shippers with respect to the ports identified in the Service Contract (Count IV), and that constituted an unreasonable refusal to deal with Complainant on the Service Contract (Count V).⁵² Respondent instead has improperly sought to narrow this case to a set of specific booking requests and denials, despite the fact that the Complaint alleges a broader course of conduct encompassing not only specific denials of previously made bookings, but also a practice of fobbing Complainant off, and thereby denying Complainant the *opportunity* to book cargo pursuant to the Service Contract in the first instance. Complainant requests that Respondent be compelled to answer these Requests, as limited by the proposals from Complainant discussed above, without requiring any additional "demonstrat[ion]" by Complainant.

⁵² As detailed herein, these requests seek documents and communications with and concerning Complainant and Complainant's cargo, including with intermediaries, Respondent's invocations of force majeure with shippers during the COVID-19 pandemic, and blanked and alternative sailings on the lines of service identified in the Service Contract.

COUNTERSTATEMENT

Complainant duplicates requests and arguments in this section. As stated above, MSC has attempted to provide, and believes it has provided, all documents concerning bookings and attempted bookings and MSC's actions with respect to requests it received for service from MSC or those acting on its behalf, as to sailings scheduled for May through July 2021 from the ports of Qingdao, China and Tianjin, China to California on which Complainant is alleging it did not receive contractually allocated service. Complainant has provided no basis to suggest that the production is incomplete. MSC has provided some documentation as to August sailings, but has not made an exhaustive search for and production of such documents, because Complainant has stated that it has not had problems with its bookings in August and has presented no claims relating to August bookings or sailings.

Respondent states that "the Complaint alleges a broader course of conduct encompassing not only specific denials of previously made bookings, but also a practice of fobbing Complainant off, and thereby denying Complainant the *opportunity* to book cargo pursuant to the Service Contract in the first instance." It is not clear what Complainant means in stating it was denied "the opportunity to book cargo." Complainant does not cite where it alleges so in the Complaint, or anything in the discovery that has already been exchanged that supports such a claim. In any event, MSC believes that the discovery it has provided encompasses a search for any such conduct, to the extent MSC understands what is meant by "fobbing off."

The motion to compel on these requests should be denied.

I. RFPs 26–27, 29–30; Interrogatories 11-12: Respondent’s Refusal to Identify Potential Witnesses Impedes Complainant’s Ability to Identify Potential Deponents and Determine the Sufficiency of Respondent’s Document Production

Complainant’s Request No. 26: Documents sufficient to identify all persons who communicated on Your behalf with MCS or any other person acting on MCS’s behalf concerning MCS Cargo.

Respondent’s Response to Request No. 26. MSC objects to this Request as overly broad and unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence in that it makes no effort to limit the request to matters that might be relevant to the allegations of the Complaint. The Complaint makes no allegation, for example, that MSC failed to properly carry cargo that it accepted and undertook to carry. Notwithstanding and without waiving the foregoing objections, MSC will provide documents reflecting communications concerning the booking of cargo that MCS demonstrates that it booked or attempted to book under the MCS Service Contract and that cargo was not in fact carried, which will include documents identifying the parties to the communications.

Complainant’s Request No. 27: Documents sufficient to identify all persons who communicated on MCS’s behalf with You or any other person acting on Your behalf concerning MCS Cargo.

Respondent’s Response to Request No. 27. MSC objects to this Request as overly broad and unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence in that it makes no effort to limit the request to matters that might be relevant to the allegations of the Complaint. The Complaint makes no allegation, for example, that MSC failed to properly carry cargo that it accepted and undertook to carry. Notwithstanding and without waiving the foregoing objections, MSC will provide documents reflecting communications concerning the booking of cargo that MCS demonstrates that it booked or attempted to book under the MCS Service Contract and that cargo was not in fact carried, which will include documents identifying the parties to the communications.

Complainant’s Request No. 29: Documents sufficient to identify all persons who receive on Your behalf booking requests for transportation by You or notices of space requirements for any shipment tendered or to be tendered under any Service Contract with You.

Respondent’s Response to Request No. 29. MSC objects to this Request as overly broad and unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence in that it makes no effort to limit the request to matters that might be relevant to the allegations of the Complaint and seeks documents and communications concerning bookings and port ranges as to which

MCS is making no claim and that do not even involve MCS. MSC further objects to this request on the basis that the phrase “notice of MCS’s space requirements” is vague. Notwithstanding and without waiving the foregoing objections, MSC will provide documents reflecting communications concerning the booking of cargo that MCS demonstrates that it booked or attempted to book under the MCS Service Contract and that cargo was not in fact carried, which will include documents identifying the parties to the communications.

Complainant’s Request No. 30: Documents sufficient to identify all persons who allocate cargo space on any sailings of Your vessels for routes covered by the OCA.

Respondent’s Response to Request No. 30. MSC objects to this Request as overly broad and unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence in that it makes no effort to limit the request to matters that might be relevant to the allegations of the Complaint and seeks documents and communications concerning bookings and port ranges as to which MCS is making no claim and that do not even involve MCS, and incorporates the objections stated with respect to Request Nos. 20 and 21. MSC further objects to the request on the basis that the phrase “persons who allocate cargo space” is vague and broad enough to cover virtually any person involved in cargo handling on MSC’s vessels.

Complainant’s Interrogatory No. 11: Identify each person with knowledge of Your regulations and practices for allocating cargo space on any sailings of Your vessels for routes covered by the OCA.

Respondent’s Response to Interrogatory No. 11. MSC objects to this Interrogatory as overly broad and unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence, in that it makes no effort to limit the scope to matters that might be relevant to the allegations of the Complaint and seeks information concerning bookings and port ranges as to which MCS is making no claim and that do not even involve MCS. In addition, despite repeated requests, MCS has not provided any evidence that MSC did not act in good faith to meet or attempt to meet its contractual commitments, making this discovery request a burdensome fishing expedition. Further, the phrase “regulations and practices for allocating cargo space” is vague and broad enough to cover virtually all aspects of cargo handling on MSC’s vessels.

Complainant’s Interrogatory No. 12: Identify each person who/that allocates cargo space on any sailings of Your vessels for routes covered by the OCA.

Respondent’s Response to Interrogatory No. 12. MSC objects to this Interrogatory as overly broad and unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence, in that it makes no effort to limit the scope to matters that might be relevant to the allegations of the Complaint and seeks information concerning bookings and port ranges as to which MCS is making no

claim and that do not even involve MCS. In addition, despite repeated requests, MCS has not provided any evidence that MSC did not act in good faith to meet or attempt to meet its contractual commitments, making this discovery request a burdensome fishing expedition. Further, the phrase “each person who/that allocates cargo space” is vague and broad enough to cover virtually any person involved in cargo handling on MSC’s vessels. MSC further objects to this Interrogatory as unduly burdensome in that it seeks information reflected in the documents Complainant and MSC produced on November 5, 2021, in response to each party’s First Requests for Production of Documents. Complainant has not provided any basis to require MSC to undertake the burden of making any further response on the matter.

Complainant’s Argument:

1. Reasons for Impasse

Respondent’s objections to Requests 26, 27, 29 and 30 and Interrogatories 11 and 12 are similar to its objections to Requests 6 through 15, 23, and 24. On the November 2, 2021 call counsel clarified a concern that these requests would require Respondent to identify individuals who were (1) involved with MCS cargo that *was* accepted for carriage, and thus not necessarily relevant to Complainant’ claims in the Complaint, or (2) involved with MCS cargo only for ministerial or data entry purposes. During that call, counsel for Complainant offered to narrow these requests to exclude those individuals whose only involvement with MCS cargo occurred *after* that cargo was accepted for carriage, and that every possible ministerial, “call center” type individual at MSC who may have dealt with MCS cargo did not need to be named, and counsel for Respondent agreed to restate its objection to Requests 26, 27, and 29 to reflect more accurately the scope of documents Respondent would produce. Complainant hoped that this matter was resolved after the November 2, 2021 call. However, Respondents refused to answer substantively the MCS Interrogatories that could have clarified this issue, and as of this filing it is unclear from Respondent’s document production which individuals might be responsive to these Requests and Interrogatories, and thus candidates for potential deposition testimony in this case.

2. *Relief Sought*

Complainant is entitled to discovery of the identities of relevant individuals who made substantive decisions or communicated substantively regarding the allocation of—or failure to allocate—cargo space to Complainant under the Service Contract and the reasons for such conduct. Complainant therefore requests that Respondent be compelled to respond to these MCS Discovery Requests sufficiently to identify these individuals as requested.

COUNTERSTATEMENT

This request appears to duplicate arguments made in Section B above, and MSC incorporates its response to that section here. It is incorrect for Complainant to state that Respondents refused to identify individuals responsive to these requests and interrogatories. All relevant individuals who made substantive decisions or communicated substantively regarding Respondent's contractual obligations to carry Complainant's cargo were identified in the parties' initial disclosures. The completeness of initial disclosures -- which listed no fewer than 29 individuals -- was confirmed by the initial document production by the parties on November 5, 2021 and Respondent's supplemental production on November 24, 2021.

In view of the fact that Respondent has previously identified all relevant individuals, and the substantial productions in response to Complainant's discovery requests, Complainant's continued demands in connection with these requests are objectionable as overly broad and unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence. Complainant has not provided any evidence that Respondent has not acted in good faith to meet its contractual commitments and has not provided any basis to require MSC to undertake the burden of making any further response on the matter. Furthermore, Complainant is well aware of the persons who dealt with MSC on matters that may remain relevant to the Complaint, both from

its own experience and the documents exchanged between the parties, and has not provided any basis to require MSC to undertake the burden of making any further response on the matter.

The motion to compel on these requests should be denied.

J. RFPs 20-22, 25; Interrogatories 18-19: Respondent's Refusal to Disclose the Capacity, Cost, and Allocation of Cargo on Respondent's Vessels Improperly Conceals Information of Key Relevance to Complainant's Causes of Action that Is Uniquely in Respondent's Possession, Custody, and Control

Complainant's Request No. 20: Documents sufficient to show the respective totals of cargo (in TEUs or FEUs) transported by You on each vessel on which MCS or any other person booked or attempted to book transportation by You of MCS Cargo, or provided You notice of MCS's space requirements for any shipment tendered or to be tendered under the OCA, that were (a) tendered to You pursuant to any Service Contract with any Shipper, or (b) transported by You not pursuant to any Service Contract with any Shipper.

Respondent's Response to Request No. 20. MSC objects to this Request as overly broad and unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence in that it makes no effort to limit the request to matters that might be relevant to the allegations of the Complaint and seeks documents and communications concerning bookings and port ranges as to which MCS is making no claim and that do not even involve MCS. MSC further objects to this request on the basis that the phrase "notice of MCS's space requirements" is vague. MSC further objects to the request on the basis that it is apparently propounded in support of the entirely unsupported and implausible theory that MSC, in collusion with Respondent COSCO, is intentionally and willfully failing to comply with its obligations under the MCS Service Contract so that it can increase carriage on the spot market even though (a) the Complaint does not identify any specific voyages on which MCS properly booked, attempted to book, or tendered cargo under the Contract but it was not carried; (b) the Complaint acknowledges that, even in times of unprecedented demand and vessel sailing and supply chain disruptions, MSC has carried a substantial amount of cargo under the Contract; (c) MCS's speculative assertions of collusion with COSCO in support of this purported scheme are entirely inconsistent with known facts, including that MSC does not have an alliance or other FMC agreement with COSCO; (d) if MSC did in fact have such a scheme it could have easily implemented it by simply declining to enter into a service contract with MCS, as is its right, or terminating its existing contract with MCS, as is also its right; and (e) the allegation ignores the well known current realities of international ocean shipping. The burden and expense of providing this data for multiple voyages months after the fact would far outweigh any likely benefit. Notwithstanding the reckless manner in which MCS has chosen to proceed, MSC has proposed an exchange of information as to MCS's core assertion that MSC has not complied with its contractual obligations, which MSC believes will show that MSC has complied with those obligations and has attempted

to work in good faith with MCS, and thus cause MCS' invented Shipping Act claims to fall without the need for judicial intervention.

Complainant's Request No. 21: Documents sufficient to show the prices charged for transportation by You of cargo pursuant to any Service Contract with any Shipper on each vessel on which MCS or any other person booked or attempted to book transportation by You of MCS Cargo, or provided You notice of MCS's space requirements for any shipment tendered or to be tendered under the OCA.

Respondent's Response to Request No. 21. MSC objects to this Request as overly broad and unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence in that it makes no effort to limit the request to matters that might be relevant to the allegations of the Complaint and seeks documents and communications concerning bookings and port ranges as to which MCS is making no claim and that do not even involve MCS. In addition to the objections stated with respect to Request No. 20, MSC further objects to the relevance and propriety of this request in that the confidential rates charged for transportation to shippers other than MCS have no relevance to this case since the Shipping Act does not permit claims of discrimination among shippers with respect to service under a service contract. See 46 U.S.C. §§ 41104(5) and (9).

Complainant's Request No. 22: Documents sufficient to show the prices charged for transportation by You of cargo not pursuant to any Service Contract with any Shipper on each vessel on which MCS or any other person booked or attempted to book transportation by You of MCS Cargo, or provided You notice of MCS's space requirements for any shipment tendered or to be tendered under the OCA.

Respondent's Response to Request No. 22. MSC objects to this Request as overly broad and unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence in that it makes no effort to limit the request to matters that might be relevant to the allegations of the Complaint and seeks documents and communications concerning bookings and port ranges as to which MCS is making no claim and that do not even involve MCS, and incorporates the objections stated with respect to Request Nos. 20 and 21.

Complainant's Request No. 25: All documents and communications concerning Your regulations and practices for allocating cargo space on any sailings of Your vessels for routes covered by the OCA.

Respondent's Response to Request No. 25. MSC objects to this Request as overly broad and unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence in that it makes no effort to limit the request to matters that might be relevant to the allegations of the Complaint and seeks documents and communications concerning bookings and port ranges as to which MCS is making no claim and that do not even involve MCS, and incorporates the

objections stated with respect to Request Nos. 20 and 21. MSC further objects to the request on the basis that the phrase “regulations and practices for allocating cargo space” is vague and broad enough to cover virtually all aspects of cargo handling on MSC’s vessels.

Complainant’s Interrogatory No. 18: For each sailing on which You transported cargo or shipment(s) for any Shipper from Qingdao, People’s Republic of China to Los Angeles, California, United States of America at any time during the period from May 1, 2021 through the present, or from Tianjin, People’s Republic of China to Los Angeles, California, United States of America at any time during the period from May 1, 2021 through June 30, 2021, identify the vessel that made such sailing and provide the following information in the format provided in the Appendix hereto:

- a. State the date of departure from the respective loading port (i.e., Qingdao or Tianjin) for such sailing;**
- b. State the date of arrival at the discharge port (i.e., Los Angeles) for such sailing;**
- c. State the total cargo capacity (in TEUs or FEUs) of the vessel that made such sailing;**
- d. State the total cargo capacity (in TEUs or FEUs) on such vessel that remained unbooked or available as of seven days prior to such vessel’s cut-off date;**
- e. State the total cargo capacity (in TEUs or FEUs) on such vessel that remained unbooked or available as of that vessel’s scheduled sailing date;**
- f. State the total cargo capacity (in TEUs or FEUs) on such vessel that remained unbooked or available as of that vessel’s actual sailing date;**
- g. Identify each Shipper whose cargo or shipment was carried on such sailing;**
- h. For each Shipper so identified, state the total volume of that Shipper’s cargo (in TEUs or FEUs) carried on such sailing;**
- i. For each Shipper so identified, state the date(s) on which such Shipper booked the space for its cargo carried on such sailing;**
- j. For each Shipper so identified, state that Shipper’s total contractual minimum quantity commitment with MSC, if any;**
- k. For each Shipper so identified, state the total volume of that Shipper’s cargo (in TEUs or FEUs) carried on such sailing not pursuant to any Service Contract; and**
- l. For each Shipper so identified, state the price(s) charged for transportation by You of that Shipper’s cargo or shipment on such sailing.**

Respondent's Response to Interrogatory No. 18. MSC objects to this Interrogatory as overly broad and unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence, in that it makes no effort to limit the scope to matters that might be relevant to the allegations of the Complaint and seeks information concerning bookings and port ranges as to which MCS is making no claim and that do not even involve MCS. MSC further objects to this Interrogatory as incapable of rational response, given that unbooked or available cargo capacity on its vessels, particularly in the current times of record demand and supply chain disruptions, changes constantly, and indeed is often unknowable at any given time given the ongoing effects of those disruptions on vessel operations and effective capacity. The burden and expense of recreating this "available" capacity for multiple voyages months after the fact would far outweigh any likely benefit, particularly in that the Complaint does not identify any specific voyages on which MCS properly booked, attempted to book, or tendered cargo under the Contract but it was not carried, and that the discovery in this case demonstrates that Complainant went weeks without contacting MSC during the period it now alleges MSC failed to carry its cargo. Further, MCS is not entitled to information regarding sailings from Qingdao from "May 1 through the present," because its Complaint was filed on August 3, 2021 and it has asserted that its issues were resolved after that date.

MSC further objects to this Interrogatory as unduly burdensome to the extent that it seeks information reflected in the documents Complainant and MSC produced on November 5, 2021, in response to each party's First Requests for Production of Documents. Complainant has not provided any basis to require MSC to undertake the burden of making any further response on the matter.

Complainant's Interrogatory No. 19: For each of the dates listed below, identify each MSC vessel that was, as of each such date, scheduled for a future sailing from Qingdao, People's Republic of China to Los Angeles, California, United States of America at any time during the period from May 1, 2021 through the present, or from Tianjin, People's Republic of China to Los Angeles, California, United States of America at any time during the period from May 1, 2021 through June 30, 2021, and, for each such vessel, state its total cargo capacity (in TEUs or FEUs), the total cargo capacity (in TEUs or FEUs) that was unbooked or available on such vessel as of each such date, and the scheduled date(s) of departure from the respective loading port (i.e., Qingdao or Tianjin) for such future sailing(s):

- a. April 8, 2021;**
- b. April 29, 2021;**
- c. May 8, 2021;**
- d. May 12, 2021;**
- e. May 24, 2021;**
- f. July 2, 2021;**
- g. July 7, 2021;**
- h. July 8, 2021;**

- i. July 21, 2021;**
- j. August 4, 2021;**
- k. August 12, 2021; and**
- l. September 20, 2021.**

Respondent's Response to Interrogatory No. 19 MSC objects to this Interrogatory, because it is vague, overly broad and unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence, in that it makes no effort to limit its scope to matters that might be relevant to the allegations of the Complaint and seeks information concerning bookings and port ranges as to which MCS is making no claim and that do not even involve MCS. MSC further objects to this Interrogatory as incapable of rational response, given that unbooked or available cargo capacity on its vessels, particularly in the current times of record demand and supply chain disruptions, changes constantly, and indeed is often unknowable at any given time given the ongoing effects of those disruptions on vessel operations and effective capacity. The burden and expense of recreating this "available" capacity for multiple voyages months after the fact would far outweigh any likely benefit, particularly in that the Complaint does not identify any specific voyages on which MCS properly booked, attempted to book, or tendered cargo under the Contract but it was not carried.

MSC further objects to this Interrogatory because it is unduly burdensome in that it seeks information reflected in the documents Complainant and MSC produced on November 5, 2021, in response to each party's First Requests for Production of Documents. Complainant has not provided any basis to require MSC to undertake the burden of making any further response on the matter.

Complainant's Argument:

1. Reasons for Impasse

Similar to other requests, Complainant offered to limit these requests geographically, to the ports at Qingdao, China and Tianjin, China, and clarified that "notice of MCS's space requirements" is intended to encompass all sailings for which Complainant or any entity acting on behalf of Complainant gave notice of a desire to book cargo, and not merely sailings for which Complainant or its agent received an actual booking number. Complainant also requested, and Respondent agreed to provide, additional detail about the manner in which this information is collected, maintained, and accessible in Respondent's systems, so that the parties could agree on

the least burdensome manner of providing the requested data. To date, Respondent has not provided the requested additional detail.

2. Relief Sought

Requests 20 through 22 and 25 relate directly to Complainant's allegations, upon information and belief, that Respondent engaged in a practice of failing to provide Complainant carriage at its contracted rates while offering carriage to other shippers at higher contracted or spot market rates, thus profiting from its alleged violations of the Shipping Act. The documents and information requested about Respondent's actual carriage of cargo on the relevant lines of service during the relevant time periods, and the pricing associated with that carriage, are key to proving Complainant's claims that Respondent's alleged conduct:

- constitutes unjust and unreasonable practices that "are occurring on a normal, customary, and continuous basis" with respect to Complainant and, upon information and belief, other shippers (Count I of the Complaint),⁵³
- constitutes unfair and unjust discrimination, and undue and unreasonable prejudice and disadvantage, against Complainant (and undue and unreasonable preference for other shippers, including in particular spot market purchasers, whose cargo *was* carried during the relevant time periods) in the matter of rates or charges with respect to the ports identified in the Service Contract (Counts III and IV of the Complaint),
- constitutes, in light of the volumes of cargo actually carried by Respondent on the relevant lines of service during the relevant time periods, including volumes carried pursuant to spot market purchases at higher prices, an unreasonable refusal to deal or negotiate with Complainant (Count V of the Complaint).

Again, Respondent's responses unilaterally and improperly seek to narrow Complainant's causes of action in this case to a specific set of booking requests and denials, despite knowing that Complainant's causes of action in this case expressly encompass a broader course of conduct. The information sought by these MCS Discovery Requests is critical to the adjudication of

⁵³ 46 C.F.R. § 545.4.

Complainant's claims, including in particular its claims of discriminatory and/or preferential treatment, and is uniquely in the possession of Respondent. Respondent also misstates the allegations in the Complaint, which nowhere alleges unlawful collusion between Respondent and former Respondent COSCO SHIPPING Lines Co., Ltd ("COSCO"). Respondent's reiteration of its demand that Complainant should be required to prove its "core assertion" *before* Respondent is obligated to respond to these MCS Discovery Requests is, as discussed above, legally baseless and inconsistent with the discovery obligations of parties under the Rules.

Complainant is entitled under the Rules to seek discovery relevant to its claims, Respondent's defenses, and damages in this proceeding. Rather than argue that Requests 20 through 22 and 25 and Interrogatories 18 and 19 are not relevant to Complainant's claims, Respondent appears to argue that Complainant's *claims* are not valid and that Respondent therefore need not respond to discovery requests relating to an "unsupported and implausible theory." Any argument that Complainant's claims were implausible, however, could and should have been made in the context of a motion to dismiss or motion for judgment on the pleadings. Respondent chose not to file any such motion and cannot now achieve a "pocket veto" of Complainant's claims, or unilaterally limit the scope of discovery in this case in an effort to preclude Complainant's ability to prove its claims, based on its own untested assertions. Complainant requests that Respondent be compelled to answer these Requests 20 through 22 and 25 and Interrogatories 18 and 19, subject to the limitations proposed by Complainant.

COUNTERSTATEMENT

Complainant mischaracterizes the meet and confer discussion it references and the basis of MSC's objections to these requests. MSC's stated objections and responses make clear that MSC objects to these requests and interrogatories because they are not relevant to Complainant's claims.

The requests are duplicative, overly broad and unduly burdensome, and not reasonably calculated to lead to the discovery of admissible evidence. Despite repeated discussions during the meet and confer process, Complainant has made little effort to meaningfully limit the requests.

MSC has provided information on when its vessels sailed from Tianjin and Qingdao during the relevant time period, but has stated repeatedly that it is impractical for it to provide information on unbooked or available cargo capacity on its vessels at various prior dates, particularly in current times of record demand and supply chain disruptions. MSC has explained to Complainant that this information is not readily accessible and is not kept in the ordinary course, and has confirmed this fact on further inquiry. MSC has further explained that the burden and expense of recreating this “available” capacity, which changes constantly, for multiple voyages months after the fact would far outweigh any likely benefit, and has confirmed that it does not have any information system that would allow this information to be readily accessed.

Complainant does not even attempt to explain the relevancy or propriety of requesting that MSC provide confidential rates and other essential terms of the service contracts of every other shipper for every sailing, much less how such information is “critical to the adjudication of Complainant’s claims.” Similarly, Complainant’s request that MSC produce “all documents and communications” regarding “regulations and practices for allocating cargo space” on any sailing in its transpacific trades is vague and facially overbroad.

The burden of this discovery is particularly unjustified because the Complaint does not identify any specific voyages on which MCS properly booked, attempted to book, or tendered cargo under the contract that was not carried, and discovery has also not disclosed any such voyages. *See Prasad v. George Washington Univ.*, 323 F.R.D. 88, 91 (D.D.C. 2017)(citing the need for proportionality consistent with the 2015 amendments to Fed. R. Civ. P. 26(b)(1), “all

discovery is subject to the balancing test ...that requires the court to limit the discovery ‘otherwise allowed by these rules’ if the burden outweighs its likely benefit.”); *Arochi v. Novak Druce Connolly Bove & Quigg, LLP*, No. 19-cv-02694, 2020 WL 7260439, at *1 (D.D.C. 2020)(discovery must be “proportional to the needs of the case.”).

As MSC has set out above, it has provided what it believes to be a complete production as to documents concerning bookings and attempted bookings and MSC’s actions with respect to requests for service it received from Complainant or those acting on its behalf, as to sailings scheduled for May through July 2021 from the ports of Qingdao, China and Tianjin, China to California on which Complainant is alleging it did not receive contractually allocated service. Complainant has stated that this information goes “to the heart of the conduct alleged in the Complaint” and MSC largely agrees. MSC has also produced vessel schedules for the period in question. Complainant has provided no basis to suggest that the production is incomplete.

MSC submits that at the least detailed and burdensome discovery such as determining unbooked space and the presentation of confidential rates charged for transportation to shippers other than MCS should be deferred until the core matters of whether Complainant properly and timely requested space on a given voyage and MSC properly addressed the request can be addressed, which MSC believes should dispose of the case without the need for this additional burden. Complainant’s argument that a staged, proportionate discovery plan to narrow the issues is somehow “inconsistent” with the Commission’s Rules is simply incorrect.

The motion to compel on these requests should be denied.

K. RFPs 17–19: Respondent’s Refusal to Disclose Unbooked Space on Relevant Sailings Baselessly Withholds Information Relevant to Respondent’s Alleged Unreasonableness in Failing to Provide Contracted Space, Discrimination, and Preferential Treatment of Other Shippers

Complainant’s Request No. 17: Documents sufficient to show the total unbooked or available cargo capacity (in TEUs or FEUs) of each vessel on

which MCS or any other person booked or attempted to book transportation by You of MCS Cargo, or provided You notice of MCS's space requirements for any shipment tendered or to be tendered under the OCA, as of the date of each such booking or attempted booking.

Respondent's Response to Request No. 17. MSC objects to this Request as overly broad and unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence in that it makes no effort to limit the request to matters that might be relevant to the allegations of the Complaint and seeks documents and communications concerning bookings and port ranges as to which MCS is making no claim and that do not even involve MCS. MSC further objects to this request on the basis that the phrase "notice of MCS's space requirements" is vague. MSC further objects to this request as incapable of rational response given that unbooked or available cargo capacity on its vessels, particularly in the current times of record demand and supply chain disruptions, changes constantly, and indeed is often unknowable at any given time given the ongoing effects of those disruptions on vessel operations and effective capacity. The burden and expense of recreating this "available" capacity for multiple voyages months after the fact would far outweigh any likely benefit, particularly that the Complaint does not identify any specific voyages on which MCS properly booked, attempted to book, or tendered cargo under the Contract but it was not carried.

Complainant's Request No. 18: Documents sufficient to show the total unbooked or available cargo capacity (in TEUs or FEUs) of each vessel on which MCS or any other person booked or attempted to book transportation by You of MCS Cargo, or provided You notice of MCS's space requirements for any shipment tendered or to be tendered under the OCA, as of the scheduled vessel sailing date associated with each such booking or attempted booking.

Respondent's Response to Request No. 18. MSC objects to this Request as overly broad and unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence in that it makes no effort to limit the request to matters that might be relevant to the allegations of the Complaint and seeks documents and communications concerning bookings and port ranges as to which MCS is making no claim and that do not even involve MCS. MSC further objects to this request on the basis that the phrase "notice of MCS's space requirements" is vague. MSC further objects to this request as incapable of rational response given that unbooked or available cargo capacity on its vessels, particularly in the current times of record demand and supply chain disruptions, changes constantly, and indeed is often unknowable given the ongoing effects of those disruptions on vessel operations and effective capacity. The burden and expense of recreating this "available" capacity for multiple voyages months after the fact would far outweigh any likely benefit, particularly that the Complaint does not identify any specific voyages on which MCS properly booked, attempted to book, or tendered cargo under the Contract but it was not carried.

Complainant's Request No. 19: Documents sufficient to show the total unbooked or available cargo capacity (in TEUs or FEUs) of each vessel on which MCS or any other person booked or attempted to book transportation by You of MCS Cargo, or provided You notice of MCS's space requirements for any shipment tendered or to be tendered under the OCA, as of the actual vessel sailing date associated with each such booking or attempted booking.

Respondent's Response to Request No. 19. MSC objects to this Request as overly broad and unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence in that it makes no effort to limit the request to matters that might be relevant to the allegations of the Complaint and seeks documents and communications concerning bookings and port ranges as to which MCS is making no claim and that do not even involve MCS. MSC further objects to this request on the basis that the phrase "notice of MCS's space requirements" is vague. MSC further objects to this request as incapable of rational response given that unbooked or available cargo capacity on its vessels, particularly in the current times of record demand and supply chain disruptions, changes constantly, and indeed is often unknowable given the ongoing effects of those disruptions on vessel operations and effective capacity. The burden and expense of recreating this "available" capacity for multiple voyages months after the fact would far outweigh any likely benefit, particularly that the Complaint does not identify any specific voyages on which MCS properly booked, attempted to book, or tendered cargo under the contract but it was not carried.

Complainant's Argument:

1. Reasons for Impasse

As with other requests, Complainant has offered to limit these requests geographically, to the ports at Qingdao, China and Tianjin, China, and has clarified that "notice of MCS's space requirements" is intended to encompass all sailings for which Complainant or any entity acting on behalf of Complainant gave notice of a desire to book cargo, not only sailings for which Complainant actually received a booking number. Complainant has requested, but as of the date of this Motion has not received, information regarding the manner in which Respondent's booking information is entered and stored in Respondent's record-keeping systems, and how it may be efficiently extracted from such systems, and remains willing to confer on the least burdensome manner of production of this highly relevant information.

2. Relief Sought

Requests 17 through 19 are relevant to Complainant's claims that Respondent engaged in a practice of denying Complainant carriage at its contracted rate despite the availability of space for Complainant's cargo on Respondent's vessels while providing carriage to other shippers, including shippers without service contracts, in violation of the Shipping Act.

Whether Respondent did, in fact, have space on any sailings from the ports covered by the Service Contract during the period when Complainant was not receiving its contracted space is, of course, highly relevant information. While Complainant is willing to discuss the least burdensome manner of collection and production, the Rules allow Complainant to request data or data compilations "stored in any medium from which information can be obtained either directly or, if necessary, after translation by the responding party into a reasonably usable form."⁵⁴ Complainant therefore requests that Respondent be compelled to answer Requests 17 through 19 in full.

COUNTERSTATEMENT

Complainant's statement that it has "not received, information regarding the manner in which Respondent's booking information is entered and stored in Respondent's record-keeping systems, and how it may be efficiently extracted" is incorrect. In fact, MSC's initial document production on November 5, 2021, included documents responsive to these requests, including representative screen shots of Respondent's system of records for recording booking requests received from Complainant's booking agents called "Magic Hand" and representative screen shots of Respondent's system of records for recording booking confirmation and related data called "MSCLink." Respondent further provided a summary table of *all* booking requests and booking confirmations related to bookings from the ports of loading in Qingdao and Tianjin for the period of May 2021 through July 2021. Moreover, Complainant is in the best position to know when it

⁵⁴ 46 C.F.R. § 502.146(a)(1)(i).

attempted to book cargo under the contract and it and its agents should have that information; nonetheless MSC has provided the information in its possession on this subject for the relevant time period.

The remainder of the requests are overly broad and unduly burdensome and not reasonably calculated to lead to the discovery of admissible evidence. Despite repeated discussions during the meet and confer process, Complainant has made little effort to meaningfully limit the requests. Respondent has stated repeatedly that it is impractical for it to provide information on unbooked or available cargo capacity on its vessels at various prior dates, particularly in current times of record demand and supply chain disruptions. MSC has explained to Complainant that this information is not readily accessible and is not kept in the ordinary course. MSC has further explained that the burden and expense of recreating this “available” capacity, which changes constantly, for multiple voyages months after the fact would far outweigh any likely benefit, and has confirmed that it does not have any information system that would allow this information to be readily accessed.

The burden of this discovery is particularly great because the Complaint does not identify any specific voyages on which MCS properly booked, attempted to book, or tendered cargo under the contract that was not carried, and discovery has also not disclosed any such voyages. *See Prasad v. George Washington Univ.*, 323 F.R.D. 88, 91 (D.D.C. 2017)(citing the need for proportionality consistent with the 2015 amendments to Fed. R. Civ. P. 26(b)(1), “all discovery is subject to the balancing test ...that requires the court to limit the discovery ‘otherwise allowed by these rules’ if the burden outweighs its likely benefit.”).

As MSC has set out above, it has provided what it believes to be a complete production as to documents concerning bookings and attempted bookings and MSC’s response as to sailings

scheduled for May through July 2021 from the ports of Qingdao, China and Tianjin, China to California on which Complainant is alleging it did not receive contractually allocated service. Complainant has stated that this information goes “to the heart of the conduct alleged in the Complaint” and MSC largely agrees. MSC submits that detailed and burdensome discovery such as determining unbooked space should at the least be deferred until the core matters of whether Complainant properly and timely requested space on a given voyage and MSC properly addressed the request can be addressed, which MSC believes should dispose of the case without the need for this additional burden.

The motion to compel on these requests should be denied.

L. RFPs 31–35; Interrogatories 13–14: Respondent’s Refusal to Disclose Relevant Financial Data and Ownership Information Is Baseless, Especially Given the Protections of the Confidentiality Stipulation and Protective Order

Complainant’s Request No. 31: Copies of Your financial statements (audited, if available) for the periods January 1, 2019 through the present, including Your balance sheet(s) or equivalent(s), income statement(s) or equivalent(s), cash flow statement(s) or equivalent(s), and statements of shareholders’ equity or equivalent(s).

Respondent’s Response to Request No. 31. MSC objects to this Request as unduly burdensome, harassing, and not reasonably calculated to lead to the discovery of admissible evidence in that it seeks information of no relevance to the Complaint for the purpose of making MSC, a private company, disclose financial information it does not disclose publically [sic].

Complainant’s Request No. 32: Documents sufficient to show Your financial performance from January 1, 2019 through the present, including Your quarterly and annual sales, gross revenues, net revenues, gross margin, gross profits or losses, operating profits or losses, and net profits or losses.

Respondent’s Response to Request No. 32. MSC objects to this Request as unduly burdensome, harassing, and not reasonably calculated to lead to the discovery of admissible evidence in that it seeks information of no relevance to the Complaint for the purpose of making MSC, a private company, disclose financial information it does not disclose publically [sic].

Complainant's Request No. 33: Documents sufficient to show the effect of any force majeure event on Your financial performance from January 1, 2020 through the present.

Respondent's Response to Request No. 33. MSC objects to this Request as unduly burdensome, harassing, and not reasonably calculated to lead to the discovery of admissible evidence in that it seeks information of no relevance to the Complaint for the purpose of making MSC, a private company, disclose financial information it does not disclose publically [sic].

Complainant's Request No 34: Documents sufficient to show Your ownership and ownership structure from January 1, 2019 through the present.

Respondent's Response to Request No. 34. MSC objects to this Request as unduly burdensome, harassing, and not reasonably calculated to lead to the discovery of admissible evidence in that it seeks information of no relevance to the Complaint for the purpose of making MSC, a private company, disclose ownership information it does not disclose publically [sic].

Complainant's Request No. 35: Documents sufficient to show Your current assets, including any insurance policies available to cover reparations, fees, or costs awarded in this action.

Respondent's Response to Request No. 35. MSC objects to this Request as unduly burdensome, harassing, and not reasonably calculated to lead to the discovery of admissible evidence in that it seeks information of no relevance to the Complaint for the purpose of making MSC, a private company, disclose financial information it does not disclose publically [sic]. MSC further objects to this Request on the basis that the existence or not of insurance coverage to cover reparations, fees, or costs awarded in this action is of no material relevance to this action since there can be no legitimate issue as to MSC's solvency to pay any such amounts.

Complainant's Interrogatory No. 13: Identify each person with knowledge of Your financial performance from January 1, 2019 through the present, including the effects of the global COVID-19 pandemic and any force majeure event on Your financial performance.

Respondent's Response to Interrogatory No. 13 MSC objects to this Interrogatory as unduly burdensome, harassing, and not reasonably calculated to lead to the discovery of admissible evidence, in that it seeks information of no relevance to the Complaint for the purpose of making MSC, a private company, disclose financial information it does not disclose publically [sic].

Complainant's Interrogatory No. 14: Identify each insurance policy available to cover reparations, fees, or costs awarded in this action, including the insurance carrier, effective date(s) of the policy, policy number, and coverage limits.

Respondent's Response to Interrogatory No. 14. MSC objects to this Interrogatory as unduly burdensome, harassing, and not reasonably calculated to lead to the discovery of admissible evidence, in that it seeks information of no relevance to the Complaint for the purpose of making MSC, a private company, disclose financial information it does not disclose publically [sic]. MSC further objects to this Interrogatory as the existence or not of insurance coverage to cover reparations, fees, or costs awarded in this action is of no material relevance to this action, since there can be no legitimate issue as to MSC's solvency to pay any such amounts.

Complainant's Argument:

1. Reasons for Impasse

Complainant has acknowledged that it likely would be appropriate for Respondent to designate documents and information responsive to these requests for confidential treatment under the Confidentiality Stipulation and Protective Order, in recognition of the fact that Respondent is a private company that generally does not publicly disclose the information sought, allaying any concerns about the public disclosure of such documents or information. Nonetheless, Respondent has flatly refused to answer Requests 31 through 35 and Interrogatories 13 and 14.

2. Relief Sought

As argued above, Requests 31 through 35 and Interrogatories 13 and 14 are relevant to Respondent's claims of "unprecedented dislocations" and "substantial operational difficulties" and "challenges", and to Respondent's invocation of force majeure as a defense to any alleged nonperformance.⁵⁵ Respondent itself has placed at issue its financial performance by claiming that it has encountered operational challenges and forces outside of its control that justify its actions (or inaction).

Requests 31 through 35 and Interrogatories 13 and 14 are also relevant to Complainant's claims that Respondent has profited from its alleged practices of denying Complainant carriage at

⁵⁵ See Answer ¶¶ 2, 15, 32 & at 17.

its contracted rate, unfairly discriminating against Complainant, and giving other shippers undue preference by, upon information and belief, offering carriage to other shippers at higher rates, including on the spot market, in violation of the Shipping Act. In addition to showing Respondent's profit motive and the results of its alleged conduct, information about the finances, corporate structure, and ownership of Respondent, as well as any insurance policies applicable to this proceeding, are relevant to (1) how discovery in this proceeding should be conducted with respect to non-parties, including Respondent's booking agents,⁵⁶ and (2) the collection of any eventual judgment against Respondent.

Requests 31 through 35 and Interrogatories 13 and 14 are tailored to ascertain information relevant to Complainant's claims and "the existence, description, nature, custody, condition, and location of any documents or other tangible things and the identity and location of persons who know of any discoverable matter."⁵⁷ The scope and time period of the requests are tailored to capture changes in Respondent's financial condition and performance from prior to the global pandemic, which Respondent has placed at issues with its defenses, through the present. While Respondent may be a private entity, it cannot use that status to refuse to produce relevant documents and information, especially given the confidentiality stipulation and protective order in this case. Complainant requests that Respondent be compelled to answer Requests 31 through 25 and Interrogatories 13 and 14 in full.

⁵⁶ For example, it appears that one of Complainant's main contacts, Thomas DeMarino, is employed by Mediterranean Shipping Company USA Inc. Respondent's counsel refused to disclose on the November 2, 2021 call the relationship between that entity and Respondent, or even whether documents from that entity would be included in Respondent's document production. While some communications to and from Mr. DeMarino have been produced by Respondent, this only highlights the need for MCS Industries to be able to understand the relationships among Respondent, its subsidiaries and affiliates, and relevant intermediaries, and tailor any further discovery requests, including to non-parties, efficiently and effectively.

⁵⁷ 46 C.F.R. § 502.141(e)(1).

COUNTERSTATEMENT

The document requests and interrogatories seeking Respondent's nonpublic financial and corporate information do not seek information that directly pertains to the facts at issue in this case and are unduly burdensome and harassing. The overbreadth of the requests, seeking nonpublic information spanning years prior to the facts at issue in this case only reinforce the impression that these requests were served for an improper purpose, rather than being reasonably calculated to lead to the discovery of admissible evidence that might be relevant to any specific allegations. *See Burlington Ins. Co. v. Okie Dokie, Inc.*, 368 F. Supp. 2d 83, 86 (D.D.C. 2005) ("relevancy does not encompass discovery of information with 'no conceivable bearing on the case.'" (denying motion to compel when requested items were "irrelevant"))).

The stated rationale for these requests and interrogatories is implausible, and based on flat misrepresentations of MSC's position. Complainant alleges that the inquiry is necessary to discovery because MSC's counsel "refused to disclose" the relationship between MSC USA Inc, which employs Mr. DeMarino, and MSC, "or even whether documents from that entity would be included in Respondent's document production." MSC USA Inc. is an agent for MSC and is listed as such in the operative service contract between the parties. Indeed, as Complainant (and the Commission) well knows, MSC USA Inc. accepted service of the Complaint in this proceeding for MSC. MSC has produced a large number of documents from MSC USA Inc. in this case on the same basis as from MSC itself, and has never suggested in any way that it would not. MSC has also agreed to produce Mr. DeMarino for deposition on the date Complainant has noticed him. Complainant's stated basis for further inquiry into the matter is thus based on a complete fabrication.

Complainant also states that the inquiries are relevant to whether it can collect an eventual judgment from MSC. This assertion cannot possibly be made in good faith. Complainant has calculated a damages claim of about \$600,000, a claim that is itself entirely unsupported by the facts of this case. MSC is a large ocean carrier with assets many times that. Complainant does not cite any legal authority for the notion that a party can obtain financial information from a party simply by filing a damages claim against it.

Complainant argues that Respondent's "itself has placed at issue its financial performance by claiming that it has encountered operational challenges and forces outside of its control" in the ocean supply chain due to the challenges related to the Coronavirus-19. This argument is a complete non sequitur. The fact that the ocean supply chain has and continues to endure unprecedented challenges in response to the pandemic is a statement of indisputable fact - the Commission itself has initiated several Fact Finding proceedings on the issue and it is a matter of common knowledge in the industry. MSC cannot make these challenges simply go away by being profitable. Again, Complainant does not cite any legal authority for the notion that a party can obtain financial information from a party based on such an allegation, or indeed any legal authority at all on the point.

Complainant's argument that the information is necessary to establish MSC's "profit motive" is also fatuous. There is no dispute that MSC is a for-profit entity. Its status as such cannot substitute for specific allegations and evidence as to whether Respondent complied with its contractual obligations to carry cargo that Complainant timely and properly booked. Either Complainant has evidence to support its claims that it properly and timely attempted to book cargo and that MSC did not comply with its contractual responsibilities in carrying it or it does not.

Again, Complainant does not cite any legal authority for the notion that it can obtain financial information from MSC based on this allegation, and there is none.

The argument that nonpublic financial and corporate information is necessary to help guide Complainant's third party discovery is also completely without merit. As an initial matter, the fact that Complainant may not understand the relationship of its own handling agent to booking agents in China is no basis to harass MSC with requests to disclose confidential commercial information that if disclosed, even inadvertently under a protective order, would be highly prejudicial. Complainant's argument is also inconsistent with the fact that it has already moved this Court for third-party subpoenas of the very same agents, demonstrating its correct understanding that those third-parties are independent from MSC.⁵⁸

Complainant suggests, without even attempting to explain how, that this information is relevant to its claims that MSC is "unfairly discriminating against Complainant, and giving other shippers undue preference by, upon information and belief, offering carriage to other shippers at higher rates, including on the spot market, in violation of the Shipping Act." The assertion is nonsensical on its face -- how do other shippers obtain an unfair preference by paying higher rates? In any event, as noted above, the Shipping Act as amended by the Ocean Shipping Reform Act does not permit claims of discrimination among shippers for contract carriage, only as between ports. *See* 46 U.S.C. §§ 41104(5) and (9). MSC expressly made this point in its Objections and Complainant simply ignores it.

Finally, this request has nothing to do with the core facts that Complainant itself has stated are at the "heart of the case," the circumstances under which Complainant did or did not seek to

⁵⁸ Penavico is in fact part of the COSCO Group. MSC has no ownership or financial interest in Expeditors, Shandong Smart, or Qingdao JET Marine Logistics.

book cargo at Tianjin and Qingdao from May to July and MSC's response to any such request. It is thus discovery that, under MSC's proposed approach, would not even be considered until those core issues are resolved and should at the least be deferred until Your Honor can decide a motion for summary disposition based on this core discovery.

The motion to compel on these requests should be denied.

M. RFPs 36–37: Respondent's Refusal to Disclose its Document Retention Policies Is Baseless

Complainant's Request No. 36: Documents sufficient to show Your policies, procedures, and/or practices concerning the retention or destruction of documents and communications, including emails.

Respondent's Response to Request No. 36. MSC objects to this Request on the basis that the time period relevant to this lawsuit is extremely recent and MSC issued a litigation hold upon becoming aware of the litigation. There is no reason to believe any general document retention policy or practice is of any material relevance.

Complainant's Request No. 37: Documents sufficient to show Your retention or destruction of documents and communications concerning this action, including any notice to preserve such evidence.

Respondent's Response to Request No. 37. MSC incorporates its objections to Request No. 36. MSC further objects that the litigation hold instructions are privileged.

Complainant's Argument:

1. Reasons for Impasse

Respondent has refused to provide documents responsive to Requests 36 and 37 unless Complainant provides a specific reason to believe documents have been destroyed. Complainant, of course, cannot ascertain what documents did or should exist, or whether they may have improperly been destroyed, without understanding Respondent's policies as requested.

2. *Relief Sought*

Requests 36 and 37 are relevant to “the existence, description, nature, custody, condition, and location of any documents or other tangible things.”⁵⁹ Respondent argues that the recency of the events at issue in this proceeding obviate the need for such discovery. Given the limited time for discovery under the Scheduling Order and the Rules, however, Complainant is entitled to this information to aid in structuring its further discovery requests and identifying any potential issues without delay. Complainant requests that Respondent be compelled to produce the documents requested by Requests 36 and 37. If Respondent does not have any document retention policies, or failed to preserve documents for this proceeding, then Respondent should be required to so confirm.

COUNTERSTATEMENT

Complainant makes no effort to address MSC’s objections that the time period relevant to this lawsuit is extremely recent, that MSC issued a litigation hold upon becoming aware of the litigation, and that there is no reason to believe any general document retention policy or practice is of any material relevance under these circumstances. Indeed, Complainant does not even attempt to argue relevance, but simply that the policy is a “document[] or other tangible thing[]” under the Commission’s rules. Complainant states that it needs the information “to aid in structuring its further discovery requests and identifying any potential issues,” but does not even attempt to explain how. This is not a valid basis to seek discovery.

Complainant has received substantial productions totaling thousands of pages in response to Complainant’s discovery requests. It has not even attempted to identify anything from that production that suggests the slightest issue with document preservation. If there proves to be such

⁵⁹ *Id.*

an issue, this request can be revisited, but for now it is just a waste of time and effort, and further evidence that Complainant seeks to divert attention away from the core facts in the case and avoid getting to the point.

The motion to compel on these requests should be denied.

N. RFP 39; Interrogatory 15: Respondent's Refusal to Disclose Other Allegations of Shipping Act Violations Potentially Conceals Information of Key Relevance to Complainant's Unjust and Unreasonable Practices Claim

Complainant's Request No. 39: All documents and communications, regardless of date, concerning any instances in which You have been accused of violating the Shipping Act or have been determined, found, or adjudged to have violated the Shipping Act.

Respondent's Response to Request No. 39. MSC objects to this Request as unduly burdensome, harassing, and not reasonably calculated to lead to the discovery of admissible evidence as to makes no effort to limit the request to matters that might be relevant to the allegations of the Complaint, which are themselves, as noted above, made entirely on the basis of speculation and not personal knowledge of the party swearing to the Complaint, except for those allegations that are simple assertions of breach of contract outside the Commission's jurisdiction.

Complainant's Interrogatory No. 15: Identify each instance, regardless of date, in which You have been accused of violating the Shipping Act or have been determined, found, or adjudged to have violated the Shipping Act.

Respondent's Response to Interrogatory No. 15 MSC objects to this Interrogatory as unduly burdensome, harassing, and not reasonably calculated to lead to the discovery of admissible evidence, as it makes no effort to limit the scope to matters that might be relevant to the allegations of the Complaint, which are themselves made entirely on the basis of speculation and not personal knowledge of the party swearing to the Complaint, except for those allegations that are simple assertions of breach of contract outside the Commission's jurisdiction.

Complainant's Argument:

1. Reasons for Impasse

Respondent has flatly refused to provide documents responsive to Request 39 and Interrogatory 15.

2. *Relief Sought*

Request 39 and Interrogatory 15 are relevant in particular to Count I of the Complaint, which alleges an unjust and unreasonable practice of denying service to Complainant under its service contract in violation of 46 U.S.C. § 41102(c). For that claim, 46 C.F.R. § 545.4 requires, *inter alia*, proof that “[t]he claimed acts or omissions of the regulated entity are occurring on a normal, customary, and continuous basis”. Clearly, any other shippers’ complaints of similar behavior by Respondent, or other alleged practices in violation of the Shipping Act, are highly relevant to proving the essential elements of that claim, and may reveal the mechanisms by which Respondent allegedly harmed Complainant as well as other shippers. Complainant is willing to limit these particular requests to January 1, 2020 through the present but, with or without that limitation, Complainant is entitled to this critical information, and requests that Respondent be compelled to respond to these requests.

COUNTERSTATEMENT

Complainant is not seeking information that directly pertains to the facts at issue in this case, specifically whether Respondent complied with its contractual obligations to carry timely and properly booked cargo by Complainant. Complainant does not even argue that this information is relevant to the facts at issue in this case or is reasonably calculated to lead to the discovery of admissible evidence that might be relevant to any specific allegations. Rather, Complainant argues that this information is relevant to claims generally under 46 U.S.C. § 41102(c). MSC disagrees. Any alleged violation of 46 U.S.C. § 41102(c) is necessarily derivative of an alleged failure by MSC to comply with its contractual obligations with Complainant; these requests are not reasonably calculated to lead to the discovery of admissible evidence relevant to any specific allegations.

The overbreadth of the initial request - “[a]ll documents and communications, regardless of date, concerning any instances” - underscores that the request was neither proportionate nor reasonably tailored to elicit information relevant to the actual facts at issue in this case. Complainant has failed to establish even the most remote relevance of this information to its specific claims, but rather is seeking to explore matter that might conceivably relate to an unfair and unreasonable practices claim that it has not yet stated. *See Food Lion, Inc. v. United Food & Com. Workers Int’l Union, AFL-CIO-CLC*, 103 F.3d 1007, 1012-13 (D.C. Cir. 1997)(“While the standard of relevancy [in discovery] is a liberal one, it is not so liberal as to allow a party ‘to roam in shadow zones of relevancy and to explore matter which does not presently appear germane on the theory that it might conceivably become so.’” (citations omitted)).

Implicitly recognizing that its request is grossly overbroad, Complainant now suggests for the first time that it is willing to limit its request to January 1, 2020 through the present and to “any other shippers’ complaints of similar behavior by Respondent.” Based on these limitations that it is seeing for the first time, MSC can state that it has not been the subject of any shippers’ complaints of similar behavior since January 1, 2020.

O. Complainant Has Conferred in Good Faith to Resolve These Disputes, But the Parties Have Reached Impasse, as Demonstrated by Respondent’s Utter Refusal to Answer the MCS Interrogatories

In anticipation of the Scheduling Order’s October 8, 2021 deadline to submit discovery disputes concerning the parties’ respective initial Requests for Production, counsel for both parties conferred via telephone on October 5, 2021 and subsequently exchanged letters.⁶⁰ Complainant thereafter submitted to the Presiding Officer a filing detailing the parties’ disputes on the October

⁶⁰ See Reynolds Decl. ¶¶ 9–12 & Exs. 5–7.

8 deadline,⁶¹ to which Respondent submitted a response on October 12, 2021.⁶² Additional correspondence regarding these discovery issues followed.⁶³ After receiving Respondent’s written responses and objections to the MCS RFPs on October 25, 2021⁶⁴, Complainant once again wrote to Respondent on October 28, 2021⁶⁵ and counsel conferred again via telephone on November 2, 2021, as memorialized in a further letter from the undersigned counsel on November 3, 2021.⁶⁶ Respondent thereafter made a limited production of documents in response to the MCS RFPs on November 5, 2021, and served objections to the MCS Interrogatories, *which did not contain a single substantive response to any interrogatory*, on November 8, 2021.⁶⁷

Mindful of the Presiding Officer’s admonition in the Scheduling Order that “a scheduling order is not a frivolous piece of paper, idly entered, which can be cavalierly disregarded by counsel without peril,”⁶⁸ Complainant promptly pursued early meet and confer discussions with Respondent’s counsel, seeking to understand and accommodate Respondent’s concerns via compromise where appropriate. To ensure that confidentiality concerns are addressed, the parties have entered into a confidentiality stipulation, which the Presiding Officer has entered as a protective order in the case.⁶⁹ Through these discussions, the parties have been able to reach accommodations on certain of Respondent’s objections, and Complainant has offered to further

⁶¹ Dkt. 16.

⁶² Response of Respondent MSC Mediterranean Shipping Company to Complainant’s “Submission of Disputes Concerning Scope of Initial Request for Production”, Dkt. 17.

⁶³ Reynolds Decl. Exs. 8–10.

⁶⁴ *Id.* Ex. 3.

⁶⁵ *Id.* Ex. 11.

⁶⁶ *See id.* ¶¶ 17–18 & Ex. 12.

⁶⁷ *Id.* Ex. 4.

⁶⁸ Scheduling Order, Dkt. 15 at 2 (citations and quotations omitted).

⁶⁹ *See* Dkts. 19–20.

focus the scope of certain of its requests to sailings from the ports at Qingdao, China and Tianjin, China to California between May and August 2021. As noted above, however, the parties remain at an impasse with respect to many other requests, as evidenced by Respondent's utter refusal to respond substantively to any of the MCS Interrogatories.

As set forth above, the MCS Discovery Requests as propounded are reasonable in scope and targeted to obtain information relevant to Complainant's claims and Respondent's defenses in this case. Complainant's proposed compromises further reduce the burden on Respondent in responding to the MCS Discovery Requests. Respondent's refusal to comply with the MCS Discovery Requests, and baseless demands that Complainant make a complete offer of proof before Respondent complies with its obligations under the Rules, are unreasonable, and prejudice Complainant by denying it the very documents and information needed to establish the causes of action it has alleged and rebut the defenses raised by Respondent. This Motion to Compel should be granted.

COUNTERSTATEMENT

MSC does not believe that this case was brought in good faith on reasonable inquiry. Its allegations (or as Complainant would have it mere suggestions) concerning collusion and conspiracy with COSCO and other carriers have already been abandoned. Its attempt to turn what is at best a breach of contract case into a Shipping Act claim by alleging that MSC intentionally and consciously sought to evade its contractual obligations in order to force Complainant and other shippers into the spot market are reckless and outrageous, and so far entirely without support in the record. When Complainant's CEO, who verified the Complaint under penalty of perjury, was asked at deposition what inquiry had been undertaken to support them, his responses as quoted throughout this opposition demonstrate that woefully little had been done on that score, but that

he had been able to find time to publicize his grievances to the press, to elected officials, and to government agencies.

Discovery that has been undertaken so far in the case confirms the recklessness of these allegations. It shows that the main reason Complainant's cargo was not being carried at Qingdao was that in many weeks MSC received no requests for carriage, that the few requests that were made were not proper under the contract, and that the problem was resolved when Complainant's handling agent replaced the booking agent it was using and steps were taken to make sure MSC received the booking requests. At Tianjin, MSC was carrying 100% of the cargo allocated to Complainant by the month of July, before the Complaint was filed, yet Complainant's CEO, who verified the Complaint, went ahead and filed it without knowledge or inquiry into that fact. *See* p. 6, n. 10, *supra*.

MSC believes that Complainant's discovery conduct reflects these unfortunate circumstances. Knowing that there was a serious question as to whether MSC even got requests to book most of the cargo Complainant alleges was not carried, MSC's counsel tried repeatedly to get Complainant's counsel to focus on the issue to no avail. When Complainant's counsel finally identified four attempted bookings at Qingdao as the basis for the claim, MSC responded within a week that one of those bookings had been made under the wrong contract, one which purported to revive it had never been received, one was made too late, and one was made for a sailing that had to be cancelled and was rebooked on another vessel. Complainant's counsel did not respond to this with any factual material in rebuttal, but merely with rhetoric reiterating his demands for extensive discovery on other matters. Complainant's counsel also repeatedly asserted, and continues to assert, that Complainant is entitled to discovery in support of legally insufficient claims, such as discrimination against shippers in contract carriage, because MSC did not file a

motion to dismiss. Complainant's CEO also did not have any specific information on these key issues, or even many of Complainant's own allegations, a month later when he was deposed.

Given this state of affairs, MSC has sought for months to focus discovery on the key issues of what bookings Complainant made or attempted to make with respect to the cargo it alleged had not been carried, and MSC's actions with respect to requests for service it received from Complainant or those acting on its behalf. MSC proposed that initial discovery be focused on this issue, with additional discovery deferred until it was determined if that initial discovery could resolve the matter. Complainant's counsel refused to even consider such an approach, even after it was pointed out that Your Honor had proposed precisely this approach in another case. But though this rejection came in a letter dated October 7, 2021, Complainant did not file a motion to compel until November 22, 2021, nearly seven weeks later, along with a plea to extend the discovery deadline because they were now allegedly out of time. In the meantime, discovery had been exchanged and a deposition taken that confirmed the lack of support for Complainant's claims, yet Complainant's response was a 50-page motion to compel.

Fortunately, MSC believes that the discovery that it has provided as to the key issues in the case, which even Complainant acknowledges lie at the "heart of the case," and that MSC has received in response to its discovery focused on these key issues, will allow it to move forward with a motion for summary disposition after the depositions that have already been noticed of four witnesses with knowledge of these issues. MSC believes that, as a result of its good faith efforts to focus on the issues that matter and get to the point, this matter has the potential to be resolved quickly if its approach is adopted.

IV. REQUEST FOR MODIFICATION OF SCHEDULING ORDER

Respondent's delay in production of appropriate responses impacts the parties' ability to complete discovery within the limits of the current Scheduling Order. Under the Scheduling Order, fact depositions are to be completed by December 13, 2021. Despite Complainant's prompt efforts to confer with Respondent, timely notice to the Presiding Officer of potential discovery disputes, and prompt pursuit of subpoenas to non-parties, Respondent's objections and refusals have compromised not only Complainant's ability to prepare adequately for depositions, but even to identify which of Respondent's employees should be deposed.

Complainant also has received a request from counsel for non-party Expeditors International of Washington, Inc. ("Expeditors") for an extension of time in which to comply with the subpoena issued by the Presiding Officer on November 19, 2021. Specifically, in light of schedule conflicts and the upcoming holiday season, Expeditors has requested until **January 10, 2022** to produce documents responsive to the requests for production attached to the subpoena, and to reschedule its deposition, which the subpoena has noticed for **November 30, 2021**, to a date no earlier than **January 10, 2022** (i.e., after Expeditors has completed its document production), with the goal of maximizing the efficiency of that deposition. Complainant does not oppose Expeditors' request (which is broadly consistent with Complainant's own request in this regard) and agrees that the requested extension would facilitate efficiency and avoid prejudice to both Complainant and Expeditors.

Complainant therefore respectfully requests an extension of the deadline for taking depositions to a date not less than 30 days after the date on which Respondent completes its production of any compelled documents and/or interrogatory responses **or** January 14, 2022, whichever is later, with corresponding extensions of all other discovery deadlines in the case.

Should the Presiding Officer determine that no order compelling additional discovery is warranted, and deny this motion, Complainant respectfully requests an extension of the deadline for taking depositions to a date not less than 30 days after the Presiding Officer issues the order denying this Motion **or** January 14, 2022, whichever is later, with corresponding extensions of all other discovery deadlines in the case.

COUNTERSTATEMENT

MSC expressly denies that its supposed failure to provide discovery has created a timing issue, or that Complainant has moved its case forward with diligence. Complainant's third party discovery could have been served many weeks earlier. Complainant has not clearly stated its relevance -- why does Complainant have to depose its own agent (Expeditors) to learn when it booked or attempted to book cargo under its service contract with MSC? The discovery that Complainant seeks in its motion to compel does not focus on the key issues in the case, and the discovery that does has already been provided. The depositions of four witnesses who can speak to those issues have been noticed within the discovery period.

MSC thus proposes the following for the efficient resolution of this matter. The depositions of Mr. DeMarino, Ms. Kapica, Ms. Montesano, and Ms. Schantzenbach will be taken as noticed by the close of the discovery deadline approved by Your Honor - December 13, 2021. MSC will file a motion for summary disposition of this case by December 23, 2021. If when that motion is filed Complainant remains unable to obtain information from the third parties it has subpoenaed, it can set forth in its opposition to the motion what facts it believes it might obtain from those subpoenas that are material to claims that are cognizable under the Shipping Act, and its cause for not having issued subpoenas to get those facts sooner. The motion to compel should be denied or, in the alternative, its consideration deferred for determination if the motion for summary

disposition is denied, based on identification of the issues remaining for resolution if the motion is denied.

V. CONCLUSION

For the reasons stated above, Complainant respectfully requests that the Presiding Officer (1) compel Respondent to comply with the MCS Discovery Requests and promptly produce the requested documents and information and (2) extend the discovery schedule of this case accordingly.

COUNTERSTATEMENT

The motion to compel should be denied or its consideration deferred while discovery is completed on the key issues in the case -- what bookings Complainant made or attempted to make with respect to the cargo it alleged had not been carried, and MSC's actions with respect to requests for service it received from Complainant or those acting on its behalf -- and it is determined whether the case can be disposed of on the basis of that discovery and a motion for summary disposition MSC plans to file based on it.

Dated: November 22, 2021

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Respectfully submitted,

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Certificate of Service

I hereby certify that I have this day served the foregoing document, the accompanying Declaration of Matthew J. Reynolds, and the exhibits attached thereto upon Respondent MSC Mediterranean Shipping Company SA by emailing copies of those documents to its counsel of record listed below:

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Dated: November 22, 2021

Matthew J. Reynolds
For Complainant MCS Industries, Inc.

CERTIFICATE OF SERVICE

I certify that on the 29th day of November 2021, a true and correct copy of the foregoing was filed via electronic mail with the Secretary of the Federal Maritime Commission, and a copy was served via electronic mail on the following:

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